NAVFAC

Naval Facilities Engineering Systems Command

NAVFAC Pacific

RFP N62742-26-R-1300

WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP, ANDERSEN AIR FORCE BASE, GUAM

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IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO. 19RXXX1	6. PROJECT NO.

7. ISSUED BY CODE N62742	8. ADDRESS OFFER TO *(If Other Than Item 7)* CODE N62742
NAVFAC PACIFIC CONSTR CONTRACTS BRANCH (CODE ACQ33) 258 MAKALAPA DR STE 100 JBPHH HI 96860-3134	HAND DELIVER NAVFAC PACIFIC CONSTRUCTION CONTRACTS BR (ACQ33) 4256 RADFORD DR, BLDG 62 HONOLULU HI 96818-3296
TEL: FAX:	TEL: FAX:

9. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE NO. *(Include area code)* *(NO COLLECT CALLS)*
	ADELE M. MURAKAMI	(808) 603-0917

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying no., date):*

RFP NO. N62742-26-R-1300, WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP, ANDERSEN AIR FORCE BASE, GUAM

GENERAL DESCRIPTION: SEE SECTION 01 11 00, Paragraph 1.1.1 Project Description

THIS PROCUREMENT IS UNRESTRICTED. North American Industry Classification System (NAICS) Code 237310—Highway, Street, and Bridge Construction —Average Annual Receipts for the Past 3 Years--$45M.

ESTIMATED COST: BETWEEN $100,000,000 and $250,000,000.

DPAS RATING: DO-C2

ENFORCEABILITY OF PROPOSAL: The proposal must set forth full, accurate and complete information as required by this solicitation. The Government will rely on such information in the award of a contract. The awardee's proposal will be incorporated into the contract and all items proposed will become binding requirements of the contract. By submission of the offer, the Offeror agrees that all items proposed (e.g., subcontractors with teaming agreements, etc.) will be utilized for the duration of the contract and any substitutions must be equal or better and will require prior approval by the Contracting Officer.

11. The Contractor shall begin performance within 15 calendar days and complete it within 1479 calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory, ☐ negotiable. *(See* Doc 00 70 00 *.)*

12 A. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES," indicate within how many calendar days after award in Item 12B.)* ☒ YES ☐ NO	12B. CALENDAR DAYS 21

13. ADDITIONAL SOLICITATION REQUIREMENTS:

A. Sealed offers in original and **See Document 00 21 16** copies to perform the work required are due at the place specified in Item 8 by **2:00 p.m. HST** *(hour)* local time **Apr. 29, 2026** *(date)*. If this is a sealed bid solicitation, offers must be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

B. An offer guarantee ☒ is, ☐ is not required.

C. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

D. Offers providing less than 150 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

SOLICITATION, OFFER, AND AWARD (Continued)

(Construction, Alteration, or Repair)

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*

SAM Unique Entity ID:

TIN NO.: **CAGE CODE:**

CODE	FACILITY CODE

15. TELEPHONE NO. *(Include area code)*
Office: **Fax:**

16. REMITTANCE ADDRESS *(Include only if different than Item 14)*

See Item 14

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within ________ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirements stated in Item 13D. Failure to insert any number means the offeror accepts the minimum in Item 13D.)*

AMOUNTS	SEE SCHEDULE OF PRICES

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.										
DATE										

20A. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*	20B. SIGNATURE	20C. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* **ITEM**

25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO

☐ 10 U.S.C. 2304(c) ☐ 41 U.S.C. 253(c)

26. ADMINISTERED BY CODE

27. PAYMENT WILL BE MADE BY: CODE

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return _______ copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work, requisitions identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications or incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation, is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30A. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*

30B. SIGNATURE	30C. DATE

31A. NAME OF CONTRACTING OFFICER *(Type or print)*

TEL: EMAIL:

31B. UNITED STATES OF AMERICA BY	31C. AWARD DATE

SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED
PRICE PROPOSAL SCHEDULE
FOR
RFP NO. N62742-26-R-1300
WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP, ANDERSEN AIR FORCE BASE, GUAM

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001AA	**BASE ITEM** The basis for SLIN 0001AA is the entire work for Project P-012 (WON 1665555) complete in accordance with the drawings and specifications, **except the work identified in any other CLIN/SLIN.**	1	Project		$__________________
		ESTIMATED QUANTITY			
0001AB	**Permeable Infill Karst Feature Mitigation** The basis for SLIN 0001AB is for mitigation of Karst Features using permeable infill complete in accordance with drawings and specifications, but **not** including work specified in any other CLIN/SLINs.	9,000	CY	$_____/CY	$__________________
0001AC	**Impermeable Infill Karst Feature Mitigation** The basis for SLIN 0001AC is for mitigation of Karst Features using impermeable infill complete in accordance with drawings and specifications, but **not** including work specified in any other CLIN/SLINs.	9,000	CY	$_____/CY	$__________________
0001AD	**One-Day Cultural Resources Feature Investigations** The basis for SLIN 0001AD is for One-Day Cultural Resources Feature Investigations for project P-012 in accordance with drawings and specifications, but **not** including work specified in any other SLINs/CLINs.	10	EA	$_____/EA	$__________________
0001AE	**Cultural Resources Post Review Discovery (Small Sites)** The basis for SLIN 0001AE are Cultural Resources Post Review Discovery for small sites (equal to or less than 0.5 hectares) for project P-012 in accordance with drawings and specifications, but **not** including work specified in any other SLINs/CLINs.	3	EA	$_____/EA	$__________________

SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED
PRICE PROPOSAL SCHEDULE
FOR
RFP NO. N62742-26-R-1300
WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP, ANDERSEN AIR FORCE BASE, GUAM

ITEM NO.	SUPPLIES/SERVICES	ESTIMATED QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001AF	**Cultural Resources Post Review Discovery (Large Sites)** The basis for SLIN 0001AF is a Cultural Resources Post Review Discovery for a large site (greater than 0.5 hectares) for project P-012 in accordance with drawings and specifications, but not including work specified in any other SLINs/CLINs	1	EA	$_____/EA	$_________________
0001AG	**Cultural Resources Post Review Discovery of Human Skeletal Remains** The basis for SLIN 0001AG are Cultural Resources Post Review Discovery of Human Skeletal Remains for project P-012 in accordance with drawings and specifications, but **not** including work specified in any other SLINs/CLINs.	5	EA	$_____/EA	$_________________
0001AH	**Electrical Resistivity Tomography (Ert) Testing** The basis for SLIN 0001AH is to conduct ERT testing in areas approved by the contracting officer, in accordance with drawings and specifications, but **not** including work specified in any other SLINs/CLINs.	37,000	LF	$_____/LF	$_________________
0001AI	**Abandoned Concrete Debris/Stockpile** The basis of SLIN 0001AI is the price for all labor, temporary stockpiling, material, testing, and equipment for disposal of abandoned waste debris/ stockpiles in accordance with the drawings and specifications, but **not** including work specified in any other SLINs/CLINs.	2,000	Ton	$_____/Ton	$_________________
0001AJ	**Abandoned Waste Debris Stockpile Excluding Concrete Debris** The basis of SLIN 0001AJ is the price for all labor, temporary stockpiling, material, testing, and equipment for disposal of abandoned waste debris stockpiles, excluding concrete debris, in accordance with the drawings and specifications, but **not** including work specified in any other SLINs/CLINs.	500	Ton	$_____/Ton	$_________________

SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED
PRICE PROPOSAL SCHEDULE
FOR
RFP NO. N62742-26-R-1300
WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP, ANDERSEN AIR FORCE BASE, GUAM

ITEM NO.	SUPPLIES/SERVICES	ESTIMATED QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001AK	**Abandoned Hazardous Waste** The basis of SLIN 0001AK the price for all labor, temporary stockpiling, material, testing, and equipment for disposal of abandoned hazardous waste in accordance with the drawings and specifications, but **not** including work specified in any other SLINs/CLINs.	100	Ton	$_____/Ton	$_________________
0001AL	**Abandoned Hazardous Liquid Waste** The basis of SLIN 0001AL is the price for all labor, temporary storage, material, testing, and equipment for disposal of abandoned hazardous liquid waste in accordance with the drawings and specifications, but **not** including work specified in any other SLINs/CLINs.	10	55-gal drum	$_____/drum	$_________________
0001AM	**Abandoned Asbestos Containing Waste Not Listed In Section 02 82 00** The basis of SLIN 0001AM is the price for all labor, temporary stockpiling, material, testing, and equipment for disposal of abandoned asbestos containing waste that are not listed in Section 02 82 00 ASBESTOS REMEDIATION, Part 1.3.1 Description of Work.	100	Ton	$_____/Ton	$_________________
				TOTAL CLIN 0001 (includes SLINs 0001AA through 0001AM)	$_________________

Notes:

1. See Document 00 22 00 for the Price Evaluation.

2. A firm-fixed-price is required for all line items. The following applies:

   ALL OR NONE OFFERS - Offers are solicited on an "all or none" basis and FAR 52.215-1, INSTRUCTIONS TO OFFERORS-COMPETITIVE ACQUISITION in Document 00 21 16, is hereby modified. Failure to submit offers for all line items listed shall be cause for rejection of the offer.

3. The Offeror SHALL include a price for ALL CLINs/SLINs.

4. Multiple awards will not be made.

5. In the event there is a difference between a unit price (s) and the extended total(s), the unit price(s) will be held to be the intended offer and the total(s) recomputed accordingly. If an offer provides a total but fails to enter a unit price, the total divided by the specified quantity will be held to be the intended unit price.

6. Payment for SLINs 0001AB through 0001AM shall be for actual quantities only. The unit prices will be used to adjust the contract price for any increase or decrease in the estimated quantities subject to the following clause:

   FAR 52.211-18, VARIATION IN ESTIMATED QUANTITY (APR 1984)

   If the quantity of a unit-priced item in this contract is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price shall be made upon demand of either party. The equitable adjustment shall be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity. If the quantity variation is such as to cause an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the Contracting Officer within 10 days from the beginning of the delay, or within such further period as may be granted by the Contracting Officer before the date of final settlement of the contract. Upon the receipt of a written request for an extension, the Contracting Officer shall ascertain the facts and make an adjustment for extending the completion date as, in the judgement of the Contracting Officer, is justified.

   (End of clause)

   0001AI. Abandoned Concrete Debris/Stockpile – The basis for SLIN 0001AI is the price to recycle or dispose of abandoned Concrete debris/stockpile. The cost must include waste characterization, sampling and analysis, excavation, segregation if required, stockpile management, packaging for shipping and hauling, and transportation. Assume disposal at a permitted recycling or disposal facility in Guam. It is acceptable to reuse onsite after processing concrete debris if the material meets the project requirements.

   0001AJ. Abandoned Waste Debris Stockpiles <u>excluding</u> Concrete Debris – The basis for SLIN 0001AJ is the price to dispose of abandoned waste debris stockpiles <u>excluding</u> concrete debris. The cost must include waste characterization, sampling and analysis, excavation, segregation if required, stockpile management, packaging for shipping and hauling, and transportation. Assume disposal at a permitted disposal facility in Guam. The abandoned waste debris may include, but is not limited to, scrap metal, plastics, and rubber.

   0001AK. Abandoned Hazardous Waste – The basis for SLIN 0001AK is the price to dispose of abandoned hazardous waste. The cost must include waste characterization, sampling and analysis, excavation, segregation if required, stockpile management, packaging for shipping and hauling, and transportation. Assume disposal at a permitted hazardous waste disposal facility in the mainland, U.S.

   0001AL. Abandoned Hazardous Liquid Waste – The basis for SLIN 0001AL is the price to dispose of abandoned hazardous liquid waste. The cost must include waste characterization, sampling and analysis, excavation, segregation if required, storage, packaging for shipping and hauling, and transportation. Assume disposal at a permitted hazardous waste disposal facility in the mainland, U.S.

   0001AM. Abandoned Asbestos Containing Waste Not Listed in Section 02 82 00 – The basis for SLIN 0001AM is the price to dispose of abandoned asbestos containing waste that are not listed in Section 02 82 00 ASBESTOS REMEDIATION, Part 1.3.1 Description of Work. The cost must include worker protection, asbestos removal work, waste characterization, sampling and analysis, excavation, segregation if required, stockpile management, package for shipping and hauling, and transportation. Assume disposal of asbestos-containing waste in a permitted disposal facility in Guam.

7. <u>**DFARS 252.247-7023, TRANSPORTATION OF SUPPLIES BY SEA**</u>. Within 30 days of each shipment, the Contractor is required to provide an electronic copy of the carrier's bill of lading to the Contracting Officer and to MARAD via e-mail, Attention: Military Team. MARAD email: Cargo.Marad@dot.gov. In addition, the Contractor shall notify the Contracting Officer when oceanic shipments have been initiated within 3 working days of shipment.

DOCUMENT 00 21 16
INSTRUCTIONS TO PROPOSERS
10/25

--End Document Table of Contents--

DOCUMENT 00 21 16
INSTRUCTIONS TO PROPOSERS
10/25

1.1 NUMBER OF COPIES/TIME OF RECEIPT

a. PRICE PROPOSAL (PAPER): An original paper and one (1) paper copy of the price proposal shall be submitted on **29 April 2026, 2:00 p.m., H.S.T.** in a sealed envelope and marked in the bottom right corner "PRICE PROPOSAL SUBMITTED UNDER RFP N62742-26-R-1300 - DO NOT OPEN IN MAILROOM." The PRICE PROPOSAL shall include the following:

(1) Pursuant to FAR 52.236-28(a) manually (wet signature) signed and completed SF 1442 (Solicitation, Offer and Award) (NOTE: SF 1442 Block 14 shall include the offeror's name and physical address exactly as shown in the System for Award Management (SAM) registration. If mailing address is different from physical address, both addresses may be shown in Block 14; however, both addresses shall be EXACTLY as shown in SAM.)

(2) Signed and completed Bid Guarantee

(3) Representations and Certifications (See Document 00 45 00) (COMPLETE ALL PROVISIONS)

(4) Information required by paragraph 1.5, Pre-Award Survey/Responsibility Determination

(5) Information required by paragraph 1.6, Partnerships, Joint Ventures (JV), Limited Liability Companies (LLC), Limited Partnerships (LP), etc.

(6) Information required by paragraph 1.8, Complementary Pricing Information

(7) Information required by paragraph 1.23, DFARS 252.204-7025, NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025), paragraph (d).

b. TECHNICAL PROPOSAL (FACTORS 1, 2 AND 3) (PAPER): An original paper and three (3) paper copies of the technical proposal shall be submitted on **29 April 2026, 2:00 p.m., H.S.T.** in a sealed envelope/package/box and marked in the bottom right corner "TECHNICAL PROPOSAL SUBMITTED UNDER RFP N62742-26-R-1300 - DO NOT OPEN IN MAILROOM." Identify the original proposal as "Original" on the cover of the proposal. The TECHNICAL PROPOSAL shall be submitted in a three-ring binder with table of contents and tabbed. The TECHNICAL PROPOSAL shall include the following:

(1) All information required by Factor 1 – Experience

(2) All information required by Factor 2 – Past Performance

(3) All information required by Factor 3 – Safety

c. SUBCONTRACTING PLAN (PAPER): An original paper and one (1) paper copy of the subcontracting plan shall be submitted by **30 April 2026, 2:00 p.m., H.S.T.** in a sealed envelope/package/box and marked in the bottom right corner "SUBCONTRACTING PLAN SUBMITTED UNDER RFP N62742-26-R-1300 - DO NOT OPEN IN MAILROOM." Identify the original proposal as "Original" on the cover of the proposal.

(1) All information required by 1.7, Subcontracting Plan

d. PRICE AND TECHNICAL PROPOSALS (ELECTRONIC): An electronic copy of the price and technical proposals shall be submitted in .pdf format on a CD-ROM with the paper copy of the subcontracting plan. The offeror is responsible for ensuring that all original paper and electronic copies are identical. Should there be a discrepancy between the paper and electronic versions, the paper copy shall govern.

e. Proposals shall be submitted as follows:

(1) If sent via U. S. Postal Mail/Express Courier:

NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, PACIFIC
Construction Contracts Branch (CON33)
258 Makalapa Drive, Suite 100
Pearl Harbor, HI 96860-3134

(2) If hand-carried (Delivery hours between 7:00 AM and 2:00 PM, Monday through Friday, except Federal Holidays)

NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, PACIFIC
Construction Contracts Branch (CON33)
4256 Radford Drive, Building 62 (if facing the building, the office is on the right. DO NOT drop-off at the Navy Federal Credit Union)
Honolulu, HI 96818-3296

1.2 INSTRUCTIONS FOR OBTAINING THE REQUEST FOR PROPOSAL

The RFP can be accessed at https://sam.gov. Printed copies of the RFP will not be issued. Contractors must register at the System for Award Management (SAM) website https://sam.gov to obtain access to the RFP documents. Registration instructions can be found on the SAM website.

1.3 INSTRUCTIONS FOR SUBMITTING QUESTIONS REGARDING SOLICITATION

Questions regarding the solicitation shall be submitted in **writing** in WORD format via electronic mail to Adele Murakami, adele.m.murakami.civ@us.navy.mil. Questions shall reference the drawing/detail and/or the specification section including paragraph number. Verbal queries will not be entertained. Responses to the questions will be provided in the form of a Notice and posted to the web site https://sam.gov. The Government may not respond to questions submitted less than 10 business days before the proposal receipt due date.

1.4 AMENDMENTS

Amendments will be posted to https://sam.gov. It is highly recommended that firms register on the SAM website as an interested vendor as this will be the only planholder's list available. It is the offeror's responsibility to check the website periodically for any amendments to the solicitation.

1.5 PREAWARD SURVEY/RESPONSIBILITY DETERMINATION

FAR §9.104 requires prospective contractors to demonstrate, among other things, that they have adequate financial resources to perform the contract or the ability to obtain them, capability to comply with the required performance schedule, a satisfactory performance record, and be otherwise eligible to receive an award under applicable laws and regulations. The pre-award survey is not a part of the technical proposal evaluation. The following information shall be submitted:

a. The offeror shall submit a document that appoints, in writing, one or more individuals, by name, each of whom will have full and independent authority to bind the offeror with respect to any act connected with this solicitation, including but not limited to: the submission and revisions of a proposal or proposals by the company, the conduct of discussion or negotiations, the submission of a Final Proposal Revision (FPR), and the execution of a contract and associated documents including bonds. Documents of appointment by a supporting resolution of the board of directors in the case of a corporation and by an instrument of similarly binding character in the case of an unincorporated entity. If bonds are not signed manually (wet signature), documents of appointment must include specific authorization and corporate approval for the use of electronic and facsimile signatures by the appointed individual(s).

b. Company financial statements (balance sheets and income statements) for past three years.

c. Financial resources available to perform the contract. Submit evidence of availability of working/operating capital that will be used for the performance of the contract. If the offeror plans to rely on financial support from other sources, identify the maximum lines of credit that will be available to include documentation to support the amounts. The maximum lines of credit should be based upon the inclusion of this contract effort. For joint ventures discuss the financial responsibilities for each partner.

d. Newly-formed entities (e.g. limited liability companies ("LLC's"), limited partnerships ("LTD's") and newly-created corporate subsidiaries) that is the entity liable for the contract ordinarily have no financial capability to support a responsibility determination. In such cases, the offeror may rely on the resources of the LLC member, parent, limited partner, or other entities related to the offeror for responsibility purposes where the offer submits a guaranty from the entity providing the resources. The offeror shall provide a guaranty agreement (See Form DCMA Form 1620 attached) for the contract price.

e. A list of existing commercial and government business commitments to include contract numbers, names of Contracting Officers, telephone numbers, value of contract, completion date and percent complete. If the list of existing commitments is extensive, provide the required information on at least five projects of similar dollar value and a summary of the existing commitments to include number of contracts, total dollar value of all contracts, and total dollar value of work remaining.

f. Copy of the email confirmation of receipt notification of successful submission of the VETS-4212.

g. As a part of the pre-award survey, the contracting officer will verify that summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk Assessment (SPRS) (https://www.sprs.csd.disa.mil/) (see Document 00 45 00, DFARS 252.204-7019, Notice of NIST SP 800-171 DoD Assessment Requirements) prior to award. At minimum, a current Basic NIST SP 800-171 DoD Assessment is required prior to award.

The information submitted for the pre-award survey will not be considered in the technical proposal evaluation unless separately submitted pursuant to the technical proposal evaluation factor submission requirements.

1.6 PARTNERSHIPS, JOINT VENTURES (JV), LIMITED LIABILITY COMPANIES (LLC), LIMITED PARTNERSHIPS (LP), ETC.

Partnerships, Joint Ventures, Limited Liability Companies, Limited Partnerships and Mentor-Protégé arrangements shall submit the following documentation regarding their business entities:

a. A copy of the Partnership Agreement, JV Agreement(s), LLC Operating Agreement(s), LP Agreement(s), and/or Mentor-Protégé Agreement(s). Contractor shall provide an updated copy whenever any change is made to the agreement.

b. The proposal and each bond or other document submitted by or on behalf of the joint venture shall be executed by each joint venture partner and shall be accompanied by evidence of the authority of the signer. That authority shall be evidenced by a document satisfactory to the Contracting Officer, which would ordinarily be, in the case of a corporate joint venture partner, a certified copy of a resolution of the board of directors, and in the case of an unincorporated joint venture partner, an instrument of similarly binding character duly executed by that entity. If one individual signs for more than one partner, the individual must sign separately for each partner which he or she represents, and must state under each signature the capacity in which he or she is signing (See FAR 4.102).

c. Identify (by name and title) the personnel having the authority to legally bind the Offeror (including authority to execute the contract documents and bonds).

d. Procedures in the event the entity is dissolved.

e. A detailed statement outlining the following in terms of percentages where appropriate:

(1) The relationship of the partners/parties in terms of business ownership, capital contribution, profit distribution or loss sharing.

(2) The management approach in terms of who will conduct, direct, supervise, control, and the controlling partner's authority to obligate the entity.

(3) The structure and decision-making responsibilities of the partners/parties in terms of who will control the manner and method of performance of work.

f. Joint Ventures shall submit the following additional documentation regarding their business entities:

(1) Together with its proposal, each corporate joint venture partner shall submit evidence satisfactory to the Contracting Officer that its board of directors has approved its participation in the joint venture. Such evidence shall be in the form of a copy of a resolution of the board of directors, certified by the Secretary of the Corporation.

(2) Together with its proposal, each joint venture partner which is an unincorporated entity shall submit evidence satisfactory to the Contracting Officer that all persons or entities which must approve decisions affecting the joint venture partner have approved the participation of the joint venture partner in the joint venture.

1.7 SUBCONTRACTING PLAN

a. As stated in Document 00 22 00, paragraph 2.1, EVALUATION CRITERIA AND BASIS OF AWARD, this is a lowest priced technically acceptable source selection. Accordingly, small business subcontracting is not included as a technical evaluation factor. However, large business concerns must submit a Small Business Subcontracting Plan that addresses the following:

1. Identify in terms of dollar value and percentage of the total acquisition, the extent of work you will perform as the prime contractor. If submitting an offer as a Joint-Venture, identify the percentage of work each member will be responsible for and indicate the size status of each member, e.g., LB, SB, SDB, WOSB, HUBZone SB, etc.

2. In accordance with FAR 52.219-9, submit a Small Business Subcontracting Plan utilizing the template at the end of this section for this project. To demonstrate commitment in using small business concerns, the Small Business Subcontracting Plan may list all subcontractors by name. **If the proposed Small Business Subcontracting goals do not meet the minimum NAVFAC Small Business Subcontracting Targets, include a detailed explanation describing the actions taken to arrive at that determination, along with an explanation for the goals that actually were proposed. In accordance with FAR 52.219-9, Alternate II, "failure to submit and negotiate a subcontracting plan shall make the offeror ineligible for award of a contract."**

b. NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent realistic, challenging small business subcontracting goals for this acquisition. Offerors shall document in their subcontracting plans the basis for all proposed goals. Plans shall be submitted with initial offers.

SB	40%
SDB	5%
HUBZone SB	3%
WOSB	9%
SDVOSB	3%

c. See the Small Business Subcontracting Plan (Template) at the end of Document 00 21 16 for format.

1.8 COMPLEMENTARY PRICING INFORMATION

Offeror's are requested to submit the attached Complementary Pricing Information (Template) at the end of Document 00 21 16 with its price proposal. The Complementary Pricing Information is for Government information only and will not be used for the Price Evaluation specified in Document 00 22 00.

1.9 FAR 52.204-7, SYSTEM FOR AWARD MANAGEMENT (NOV 2024)

(a) Definitions. As used in this provision—

"Electronic Funds Transfer (EFT) indicator" means a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the commercial, nonprofit, or Government entity to establish additional System for Award Management records for identifying alternative EFT accounts (see subpart 32.11) for the same entity.

Registered in the System for Award Management (SAM) means that–

(1) The Offeror has entered all mandatory information, including the unique entity identifier and the EFT indicator, if applicable, the Commercial and Government Entity (CAGE) code, as well as data required by the Federal Funding Accountability and Transparency Act of 2006 (see subpart 4.14) into the SAM;

(2) The offeror has completed the Core, Assertions, and Representations and Certifications, and Points of Contact sections of the registration in the SAM;

(3) The Government has validated all mandatory data fields, to include validation of the Taxpayer Identification Number (TIN) with the Internal Revenue Service (IRS). The offeror will be required to provide consent for TIN validation to the Government as a part of the SAM registration process; and

(4) The Government has marked the record "Active".

Unique entity identifier means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

(b) (1) An Offeror is required to be registered in SAM when submitting an offer or quotation and at time of award (see FAR clause 52.204-13, System for Award Management Maintenance, for the requirement to maintain SAM registration during performance and through final payment).

(2) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address exactly as stated in the offer. The Offeror also shall enter its EFT indicator, if applicable. The unique entity identifier will be used by the Contracting Officer to verify that the Offeror is registered in the SAM.

(c) If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for establishment of the unique entity identifier directly to obtain one. The Offeror should be prepared to provide the following information:

(1) Company legal business name.
(2) Tradestyle, doing business, or other name by which your entity is commonly recognized.
(3) Company physical street address, city, state, and Zip Code.
(4) Company mailing address, city, state and Zip Code (if separate from physical).
(5) Company telephone number.
(6) Date the company was started.
(7) Number of employees at your location.
(8) Chief executive officer/key manager.
(9) Line of business (industry).

(10) Company headquarters name and address (reporting relationship within your entity).

(d) Processing time should be taken into consideration when registering. Offerors who are not registered in SAM should consider applying for registration immediately upon receipt of this solicitation. See https://www.sam.gov for information on registration.

1.10 FAR 52.204-16, COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020)

(a) *Definition.* As used in this provision –

Commercial and Government Entity (CAGE) code means–

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

(b) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its proposal. The CAGE code must be for that name and location address. Insert the word “CAGE” before the number. The CAGE code is required prior to award.

(c) CAGE codes may be obtained via–

(1) Registration in the System for Award Management (SAM) at www.sam.gov. If the Offeror is located in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA Commercial and Government Entity (CAGE) Branch will assign a CAGE code as a part of the SAM registration process. SAM registrants located outside the United States and its outlying areas shall obtain a NCAGE code prior to registration in SAM (see paragraph (c)(3) of this provision).

(2) *The DLA Contractor and Government Entity (CAGE) Branch.* If registration in SAM is not required for the subject procurement, and the Offeror does not otherwise register in SAM, an Offeror located in the United States or its outlying areas may request that a CAGE code be assigned by submitting a request at https://cage.dla.mil.

(3) The appropriate country codification bureau. Entities located outside the United States and its outlying areas may obtain an NCAGE code by contacting the Codification Bureau in the foreign entity's country if that country is a member of NATO or a sponsored nation. NCAGE codes may be obtained from the NSPA at https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx if the foreign entity’s country is not a member of NATO or a sponsored nation. Points of contact for codification bureaus, as well as additional information on obtaining NCAGE codes, are available at http://www.nato.int/structur/AC/135/main/links/contacts.htm.

(d) Additional guidance for establishing and maintaining CAGE codes is available at https://cage.dla.mil.

(e) When a CAGE code is required for the immediate owner and/or the highest-level owner by Federal Acquisition Regulation (FAR) 52.204-17 or 52.212-3(p), the Offeror shall obtain the respective CAGE code from that entity to supply the CAGE code to the Government.

(f) Do not delay submission of the offer pending receipt of a CAGE code.

(g) If the solicitation includes FAR clause 52.204-2, Security Requirements, a subcontractor requiring access to classified information under a contract shall be identified with a CAGE code on the DD Form 254. The Contractor shall require a subcontractor requiring access to classified information to provide its CAGE code with its name and location address or otherwise include it prominently in the proposal. Each location of subcontractor performance listed on the DD Form 254 is required to reflect a corresponding unique CAGE code for each listed location unless the work is being performed at a Government facility, in which case the agency location code shall be used. The CAGE code must be for that name and location address. Insert the word "CAGE" before the number. The CAGE code is required prior to award.

1.11 FAR 52.211-14, NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be _ DX rated order; **X** DO-C2 rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

1.12 FAR 52.214-34, SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)

Offers submitted in response to this solicitation shall be in the English language. Offers received in other than English shall be rejected.

1.13 FAR 52.214-35, SUBMISSION OF OFFERS IN U.S. CURRENCY (APR 1991)

Offers submitted in response to this solicitation shall be in terms of U.S. dollars. Offers received in other than U.S. dollars shall be rejected.

1.14 FAR 52.215-1, INSTRUCTIONS TO OFFERORS--COMPETITIVE ACQUISITION (NOV 2021)

(a) *Definitions*. As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations*. If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals. (1) Unless other methods (*e.g.,* electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show–

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals. (i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii) (A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date*. Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data*. Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with-the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [*insert numbers or other identification of sheets*]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award. (1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government’s interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror’s initial proposal should contain the offeror’s best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

1.15 FAR 52.216-1, TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a firm-fixed-price contract resulting from this solicitation.

1.16 FAR 52.222-56, CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN (OCT 2025)

(a) The term "commercially available off-the-shelf (COTS) item," is defined in the clause of this solicitation entitled "Combating Trafficking in Persons" (FAR clause 52.222-50).

(b) The apparent successful Offeror shall submit, prior to award, a certification, as specified in paragraph (c) of this provision, for the portion (if any) of the contract that-

(1) Is for supplies, other than commercially available off-the-shelf items, to be acquired outside the United States, or services to be performed outside the United States; and

(2) Has an estimated value that exceeds $700,000.

(c) The certification shall state that-

(1) It has implemented a compliance plan to prevent any prohibited activities identified in paragraph (b) of the clause at 52.222-50, Combating Trafficking in Persons, and to monitor, detect, and terminate the contract with a subcontractor engaging in prohibited activities identified at paragraph (b) of the clause at 52.222-50, Combating Trafficking in Persons; and

(2) After having conducted due diligence, either-

(i) To the best of the Offeror's knowledge and belief, neither it nor any of its proposed agents, subcontractors, or their agents is engaged in any such activities; or

(ii) If abuses relating to any of the prohibited activities identified in 52.222-50(b) have been found, the Offeror or proposed subcontractor has taken the appropriate remedial and referral actions.

1.17 FAR 52.225-12, NOTICE OF BUY AMERICAN REQUIREMENT--CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (MAY 2014) ALTERNATE I (MAY 2014)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "designated country construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials Under Trade Agreements" (Federal Acquisition Regulation (FAR) clause 52.225-11).

(b) *Requests for determination of inapplicability*. An offeror requesting a determination regarding the inapplicability of the Buy American statute shall submit the request with its offer, including the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause 52.225-11.

(c) Evaluation of offers. (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause 52.225-11.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers. (1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause 52.225-11, the offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause 52.225-11 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FARclause 52.225-11 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the offeror shall be required to furnish such domestic or

designated country construction material. An offer based on use of the foreign construction material for which an exception was requested-

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

1.18 FAR 52.228-17, INDIVIDUAL SURETY—PLEDGE OF ASSETS (FEB 2021)

(a) Offerors shall obtain from each person acting as an individual surety on a bid guarantee—

(1) A pledge of assets that meets the eligibility, valuation, and security requirements described in the Federal Acquisition Regulation (FAR) 28.203-1; and

(2) Standard Form 28, Affidavit of Individual Surety.

(b) The Offeror shall include with its offer the information required at paragraph (a) of this provision within the timeframe specified in the provision at FAR 52.228-1, Bid Guarantee, or as otherwise established by the Contracting Officer.

(c) The Contracting Officer may release the security interest on the individual surety's assets in support of a bid guarantee based upon evidence that the offer supported by the individual surety will not result in contract award.

1.19 FAR 52.233-2, SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the General Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from NAVFACENGCOM, Pacific (CON33), Construction Contracts Branch, 258 Makalapa Drive, Suite 100, Joint Base Pearl Harbor-Hickam, HI 96860-3134.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

1.20 FAR 52.236-27, SITE VISIT (CONSTRUCTION) (FEB 1995) ALTERNATE I (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigation and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) A **one-time** pre-proposal site visit has been scheduled **25 March 2026, 9:00 a.m. ChST.** This site visit is to provide Offerors with an opportunity to familiarize themselves with the jobsite and conditions to be encountered and **is not** for the purpose of answering questions. Offerors interested in attending this pre-proposal site visit shall submit the following forms (located at the end of this Document) and documents:

(1) Base Access Request (BAR) – Contractor Memo (Fill-in information indicated with red.)
(2) III Log (Complete in accordance with the attached "How to Fill Out the III Log" instructions located at the end of this Document.)
(3) Base Access Affidavit 2024 (completed for each visitor that does NOT have a DBIDS pass)
(4) Foreign National Access Request Form (This form only required for foreigners and as applicable should include required supporting documentation.)
(5) Either a U.S. Passport or REAL ID Act Driver's License/ID
(6) Information for Approval of Camera Pass: Company Name and Address, Attendees Name(s), and Position Title(s). Individuals must be approved to take photos for this Site Visit. Therefore, the failure to submit this information for approval will prohibit the taking of photos.

All completed forms and documents and requested information shall be emailed to Adele Murakami at adele.m.murakami.civ@us.navy.mil on or before **25 February 2026, 2:00 p.m. H.S.T.**

Approved BAR forms will be returned to Contractors and should be taken (at least 7-10 business days prior to the date of the Site Visit) to the Andersen Air Force Base Pass and ID office (map located after this Document), which is located outside the Main Gate. A tracking number will be assigned for use in following up on the processing and approval of Base Passes.

On the day of the Site Visit, Contractors who DO NOT have DBIDS shall bring their U.S. Passport or REAL ID compliant ID, a copy of their "Base Access Affidavit" and "III Log" and assigned Tracking Number to the North Gate Visitor Control Center (VCC), Andersen Air Force Base, to use for picking up their approved Base Pass. Please schedule ample time, as long lines may cause delays.

(c) **PLEASE BE INFORMED**: Sufficient processing time is required for each Visitor's forms. Consequently, a Visitor may not be able to attend the Site Visit if incomplete forms and packages cause a delay in the processing of their Base Pass or all required documents are submitted after the specified due date.

(d) The furnishing of the above information, including your Social Security Number, is voluntary. However, your failure to furnish all or part of the information request may result in the Government's denial of access to the jobsite. Any of the above information furnished by you and protected under the Privacy Act shall not be released unless permitted by law and/or you have consented to such release.

(e) Attendees shall meet at the North Gate VCC.

1.21 FAR 52.236-28, PREPARATION OF PROPOSALS-CONSTRUCTION (OCT 1997)

(a) Proposals must be (1) submitted on the forms furnished by the Government or on copies of those forms, and (2) manually signed. The person signing a proposal must initial each erasure or change appearing on any proposal form.

(b) The proposal form may require offerors to submit proposed prices for one or more items on various bases, including—

(1) Lump sum price;

(2) Alternate prices;

(3) Units of construction; or

(4) Any combination of subparagraphs (b)(1) through (b)(3) of this provision.

(c) If the solicitation requires submission of a proposal on all items, failure to do so may result in the proposal being rejected without further consideration. If a proposal on all items is not required, offerors should insert the words "no proposal" in the space provided for any item on which no price is submitted.

(d) Alternate proposals will not be considered unless this solicitation authorizes their submission.

1.22 DFARS 252.204-7008, COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016)

(a) *Definitions*. As used in this provision—

"Controlled technical information," "covered contractor information system," "covered defense information," "cyber incident," "information system," and "technical information" are defined in clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause 252.204-7012, shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see 252.204-7012(b)(2)—

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (see http://dx.doi.org/10.6028/NIST.SP.800-171) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2) (i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of—

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

1.23 DFARS 252.204-7025, NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)", and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b) (1) Cybersecurity Maturity Model Certification (CMMC) level. The CMMC level required by this solicitation is: **CMMC Level 1 (Self)**. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation—

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (https://piee.eb.mil) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) Plan of action and milestones. If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) CMMC unique identifiers. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

1.24 DFARS 252.215-7008, ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements*. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to—

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010 , Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation*. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4 (c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [*U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification*].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

1.25 DFARS 252.215-7010, REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA – BASIC (MAY 2024)

(a) *Definitions*. As used in this provision—

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

Sufficient non-Government sales means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by Federal Acquisition Regulation (FAR) 15.404-1(b)(2)(ii)(B).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) *Exceptions from certified cost or pricing data*.

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) *Exception for prices set by law or regulation - Identification of the law or regulation establishing the prices offered.* If the prices are controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial product or commercial service exception*. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include—

(A) For items previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial—

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including—

(i) For products under paragraph (3)(i) of the "commercial product" definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the "commercial product" definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part, if one is assigned; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall—

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog—

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) *Requirements for certified cost or pricing data*. If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall prepare and submit certified cost or pricing data and supporting attachments in accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in any resultant contract, unless the Contracting Officer and the Offeror agree to a different format and change this provision to use Alternate I.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(ii).

(d) *Requirements for data other than certified cost or pricing data.*

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include the minimum information necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402(a)(i), 215.404-1(b), and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

"By submission of this data, the Offeror *[Offeror insert company name]* certifies that the customer was *[Offeror insert one or more of the following as applicable: a government customer; a commercial customer purchasing the same or similar product for governmental purposes (e.g., Federal, state, local, or foreign government); or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose]*."

(4) Within 10 days of a written request from the Contracting Officer for additional information to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3 or DFARS 234.7002(e), the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) *Subcontract price evaluation.* (i) Offerors shall obtain from subcontractors the minimum information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost data may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary –

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) *Subcontracts.* The Offeror shall insert the substance of this provision, including this paragraph (e), in subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of –

(1) Paragraphs (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

1.26 DFARS 252.225-7057, PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (AUG 2022)

(a) Definitions. As used in this provision—

"Covered contract" and "covered entity" have the meaning given in the clause 252.225-7058, Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.

(b) Prohibition on award. In accordance with section 855 of the National Defense Authorization Act for Fiscal Year 2022 (Pub. L. 117-81, 10 U.S.C. 4651 note prec.), DoD may not award a contract to the Offeror if it is a covered entity and proposes to employ one or more individuals who will perform work in the People's Republic of China on a covered contract, unless the Offeror has disclosed its use of workforce and facilities in the People's Republic of China.

(c) Preaward disclosure requirement. At the time of submission of an offer for a covered contract, an Offeror that is a covered entity shall provide disclosures to include—

(1) The proposed use of workforce on a covered contract or subcontract, if the Offeror employs one or more individuals who perform work in the People's Republic of China;

(2) The total number of such individuals who will perform work in the People's Republic of China; and

(3) A description of the physical presence, including street address or addresses, in the People's Republic of China, where work on the covered contract will be performed.

1.27 DFARS 252.236-7008, CONTRACT PRICES--BIDDING SCHEDULES (DEC 1991)

(a) The Government's payment for the items listed in the Bidding Schedule shall constitute full compensation to the Contractor for—

(1) Furnishing all plant, labor, equipment, appliances, and materials; and

(2) Performing all operations required to complete the work in conformity with the drawings and specifications.

(b) The Contractor shall include in the prices for the items listed in the Bidding Schedule all costs for work in the specifications, whether or not specifically listed in the Bidding Schedule.

1.28 TERRITORY OF GUAM NOTICE CONCERNING TAXES, LICENSES, WITHHOLDINGS

(NOTE: The information in this Instructions to Proposers is provided by the Government of Guam, Department of Revenue and Taxation. Any questions concerning applicability or interpretation should be directed to that Agency at physical address: 1240 Army Drive, Barrigada, Guam, 96913; mailing address: Department of Revenue & Taxation, Taxpayer Services Division, PO Box 23607, Barrigada, Guam 96921; or by phone at (671) 635-1835. Business registration with the Government of Guam is not considered in determining contractor responsiveness or responsibility. Offerors attention is directed to the Clause in the solicitation entitled "PERMITS AND RESPONSIBILITIES.") (FAR 52.236-7).

1. All persons engaging in business in Guam must be licensed to do so by the Government of Guam prior to commencement of business in Guam. Engaging in business includes, but is not limited to, services provided by contractors. Applications for business licenses shall be made to the Department of Revenue and Taxation, License and Registration Branch.

2. All corporations, domestic (created under the laws of Guam) or foreign (not created under the laws of Guam) must register with the Department of Revenue and Taxation, License and Registration Branch.

3. Any person engaging in business on Guam must file monthly Business Privilege Tax returns with the Department of Revenue and Taxation.

4. All corporations with the Guam source of funds must file income tax returns to the Department of Revenue and Taxation on the prescribed forms.

5. All employers must deposit wage withholdings from their employees to the Treasurer of Guam. Guam Depository Receipts, as well as Quarterly Withholding Statements are required to be filed with the Department of Revenue and Taxation in the same manner as similar returns and statements required to be filed with the U.S. Internal Revenue Service.

6. Failure to comply with the above may result in criminal or civil penalties as provided by law.

--End of Document--

GUARANTY AGREEMENT FOR CORPORATE GUARANTOR

(Applicable to One or More Government Contracts)

The undersigned ____
(Insert Guarantor's Name)

____
(Insert Guarantor's Address)

for itself, its successors and assigns, hereinafter referred to as the Guarantor, requests the United States of America (Department of Defense) hereinafter called the Government, to award contract or contracts to

____ a corporation
(Insert Contractor's Name)

organized under the laws of the State of ____________________ having its principal place of business

at ____
(Street Address)

in the City of ____________________ in the State of ____________________,

herein after called the Contractor. The undersigned Guarantor agrees to guarantee absolutely to the Government the full, complete and faithful performance of the Contractor of any and all contracts, hereinafter referred to as such contract, according to the terms and conditions thereof and at the time and in the manner provided therein.

In consideration of the award of any and all contracts to the Contractor, the undersigned Guarantor agrees as follows:

1. *Guaranty*. The Guarantor absolutely guarantees the full, complete and faithful performance by the Contractor of such contract, as such contract may be from time to time amended as authorized by its terms, according to the terms and conditions of such contract as so amended, and at the time and in the manner provided therein. The Guarantor agrees to provide the Contractor all necessary and required resources including financing, which are necessary to assure the full, complete and satisfactory performance of such contract.
2. *Extension of Time of Performance*. Any extension of the time of performance of such contract as so amended shall not release the undersigned Guarantor from liability hereon.
3. *Assignment*. This instrument shall bind the undersigned Guarantor, its successors and assigns. If any person, firm, corporation or entity other than the Contractor becomes obligated to perform the contract or any part thereof, whether by operation of law or otherwise, any and all rights of the Government against the Guarantor shall remain in full force.
4. *Default*. In the event of termination for default under the terms of such contract, or in the event of failure, insolvency, default, bankruptcy, arrangement, appointment of receiver of the Contractor or other liquidation of the Contractor, the Guaranty herein shall become absolute.
5. *Waiver of Notice*. The Guarantor waives notice of default on the part of the Contractor and agrees that its Guaranty shall become absolute without necessity for the giving of such notice.
6. *Continuation of Guaranty*. The Guaranty herein shall continue until full, complete and faithful performance of such contract as it may be from time to time amended as authorized by its terms.
7. *Default Liability*. In addition to all other guarantees contained in this Agreement, in the event that the Government terminates such contract for default and awards the uncompleted portion of such contract to another source at a fair and reasonable price, the Guarantor shall be liable for any excess costs incurred by the Government as a result of such reprocurement and for the repayment of any unrecouped payments (e.g., partial payments, Progress Payments, or Advance Payments) paid to the Contractor by the Government. In addition, the Guarantor shall be liable for all costs end expenses paid or incurred by the Government in enforcing this Guaranty. The Contracting Officer representing the Government in connection with such contract shall determine the total costs and expenses, if any, incurred by the Government.
8. *Enforcement*. This Guaranty Agreement shall inure to the benefit of and may be enforced by the Government.
9. *Construction*. Nothing in this Guaranty Agreement shall be construed to obligate the Government to award a contract to the Contractor.

10. *Coverage, Termination, Waiver, and Expiration*.

a. Except as otherwise provided herein, this Guaranty Agreement refers to and shall be effective with respect to any and all contracts for supplies or services entered into, on or after the date of this Agreement between the Government and the Contractor. Unless otherwise indicated by the context the singular of the word "contract" as used in this Agreement shall mean the plural term "contracts" whenever this Agreement shall become effective with respect to more than one contract between the Government and the Contractor. For the purpose of any additional procurement of supplies or services called for by any agreement supplemental to a contract between the Government and the Contractor, the term "contract" shall refer to such supplemental agreement.

Additionally, this Agreement will include the contracts already in existence between the Contractor and the Government before the Agreement date, as specified here:

____

____

____

b. The Guaranty Agreement is a continuing guaranty and shall remain in full force and effect until the later of (1) the performance in full of the guaranteed obligations, or under the guaranteed contracts. (2) the termination of all continuing obligations and commitments of the Contractor under the guaranteed contracts. In the case of termination of the continuing commitments of the Contractor on any guaranteed contract, the termination notices must be given in writing citing the affected contracts.

c. When the Government Contracting Officer determines that it is in the best interest of the Government to do so, the Contracting Officer may, by written notice addressed to the Guarantor at the Guarantor's address shown herein, waive the effect of this Agreement with respect to any specifically identified individual contract between the Government and the Contractor entered into after the date of such written notice. A separate written notice shall be given with respect to each contract that the Contracting Officer determines shall not be subject to the effect of this Agreement.

d. In the event that all of the contracts covered by this Guaranty Agreement have been satisfactorily completed by the Contractor including all continuing commitment of the Contractor under the contracts, the Guarantor may request the cognizant Government Contracting Officer for this Guaranty Agreement to issue a written notice which states that this Guaranty Agreement is considered to have expired.

Executed the ________________ day of ______________ year of ______ .

____
(Guarantor)

By ____
(Title)

____
(Business Address)

Witness ____________________________________

Witness ____________________________________

I, ____, certify that I am the duly elected Secretary of the Corporation named as Guarantor herein; that ______________________________ who signed this Agreement on behalf of the Guarantor, was then ____________________________ of said Corporation, that said Agreement was duly signed for and in behalf of said Corporation by authority of its governing body, and is within the scope of its corporate powers.

Corporate Seal:

____
(Secretary)

Receipt of a copy of the above Guaranty Agreement is acknowledged.

THE UNITED STATES OF AMERICA

By ______________________________ ______________________________

______________________________ ______________________________
(Contracting Officer) (Contracting Officer Address)

SMALL BUSINESS SUBCONTRACTING PLAN
(RFP NO. N62742-26-R-1300/CONTRACT NO. TBD)

INDIVIDUAL SMALL BUSINESS SUBCONTRACTING PLAN (Template)
Edit or delete red font text and complete fill-ins as applicable

This template is designed to be consistent with FAR 19.704, Subcontracting Plan Requirements and FAR clause 52.219-9, Small Business Subcontracting Plan ("subcontracting plan"). Other formats may be acceptable, including commercial or master subcontracting plans; however, failure to include the essential information exemplified in this individual plan template may be cause for delay in acceptance or rejection of a bid/offer.

(TO BE SUBMITTED BY OTHER THAN SMALL BUSINESSES ONLY)
(Also referred to as large businesses)

(CONTRACTOR'S NAME)
(ADDRESS)

(CONTRACTOR'S CORPORATE HEADQUARTERS ADDRESS)
[If same as above, so indicate].

RFP N62742-26-R-1300
WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP, ANDERSEN AIR FORCE BASE, GUAM

(Date Prepared)

PLAN SUBMITTED BY:

Signature:______________________________________Date:__________________________

Printed Name: ____

Title: ____

REVIEWED:

_____________________________________ ____________________
Small Business Professional Date

REVIEWED:

_____________________________________ ____________________
Small Business Administration Date
Procurement Center Representative

ACCEPTED:

____________________________________ ____________________

Procuring Contracting Officer Date

☐ The SBSP contains a SDB goal of less than 5%. A detailed reasoning for recommending approval is provided below. DFARS 219.705-4(d) requires approval one level above the Contracting Officer.

☐ The SBSP contains a zero goal in one or more small business category. Advice has been obtained and recommendations received from the cognizant Contract Administration Office have been considered. Detailed reasoning for recommending approval is provided below. NMCARS 5219.705-4(d) requires approval one level above the Contracting Officer.

REMARKS:

APPROVED: ONE LEVEL ABOVE THE CONTRACTING OFFICER (IF APPLICABLE)

____________________________________ ____________________

Contracting Officer (one level above) Date

☐ The SBSP contains a SDB goal of less than 5%. Based upon detailed reasoning provided above, this SBSP is approved as required by DFARS 219.705-4(d).

☐ The SBSP contains a zero goal in one or more small business category. Based upon the detailed reasoning provided above, this SBSP is approved as required by NMCARS 5219.705-4(d).

SUBCONTRACTING PLAN

This document, together with any attachments, is submitted as a subcontracting plan to satisfy the requirements of Federal Acquisition Regulations (FAR) 19.704. The following goals are established for the contract (including base period and all option items/periods (if applicable)). Attachment 1 provides breakdowns for the base item. *Percentages may be rounded to nearest tenth of a percent. INCLUDE SUPPORTING RATIONALE FOR ALL PROPOSED GOALS.*

1. a. Total Contract Value $_______________
(including options)

b. Total Subcontracted $_______________ _______% of 1.a
(inclusive of all planned subcontracting to all businesses, regardless of size)

c. Total Prime-performed $_______________ _______% of 1.a

2. The following dollars and percentage goals are applicable to the contract cited above. (See FAR 19.704(a)(1) and (2))

a. Large Business $_______________ _______% of 1.b

This number represents total planned subcontract dollars that will be awarded to other than small business concerns (including subcontracts awarded to Historically Black Colleges, Universities and Minority Institutions (HBCU/MIs).

b. Small Business (SB) $_______________ _______% of 1.b

This number represents total planned subcontract dollars that will be awarded to **small business concerns**** as well as subcontracts awarded under the AbilityOne Program to SourceAmerica (formerly NISH) and National Industries for the Blind (NIB) organizations and subcontracts awarded to Alaskan Native Corporations (ANCs) and Indian Tribes as prescribed in FAR 19.703(c) & FAR 52.219-9.

(** Small business concerns include SBs, Small Disadvantaged Businesses (SDB), Women-Owned Small Businesses (WOSB), Historically Underutilized Business Zone (HUBZone) Small Businesses, Veteran-Owned Small Businesses (VOSB) and Service-Disabled Veteran-Owned Small Businesses (SDVOSB))

(Include 2.c, 2.d, 2.e, 2.f, 2.g, 2.h, and 2.i, below).

Notes:

(1) Lines 1.b + 1.c=100% of Line 1.a
(2) Lines 2.a + 2.b = 100% of Line 1.b
(3) Lines 2.c, 2.d, 2.e, 2.f, 2.g, 2.h, and 2.i are calculated against Line 1.b, the total value of overall subcontract dollars.
(4) Subcontracts to companies that qualify in multiple categories of SB must be reported under each category. For example: if you are planning to subcontract $100,000 to company ABC, a woman-owned SDB that is also a certified HUBZone SB, you will report $100,000 on line 2.b (SB), 2.c (HUBZone), 2.d (WOSB) and 2.e (SDB). Accordingly, the sum of 2.c through 2.i will not necessarily equate to the value of 2.b.

(5) Designated HUBZone SBs must be certified by the Small Business Administration (SBA).

c. HUBZone SB $______________ ________% of 1.b

This number represents total planned subcontract dollars that will be awarded to qualified HUBZone small business concerns certified by SBA. (Included in total for 2.b, above)

d. WOSB $______________ ________% of 1.b

This number represents total planned subcontract dollars under that will be awarded to WOSBs. (Included in total for 2.b, above)

e. SDB $______________ ________% of 1.b

This number represents total planned subcontracting dollars that will be awarded to small business concerns owned and controlled by socially and economically disadvantaged individuals (include in this category the planned subcontracting dollars to ANCs and Indian Tribes shown in total for 2.i below). (Included in total for 2.b, above)

f. VOSB $______________ ________% of 1.b

This number represents total planned subcontract dollars that will be awarded to small business concerns owned and controlled by veterans (include in this category the planned subcontracting dollars for SDVOSBs shown in 2.g below). (Included in total for 2.b, above)

g. SDVOSB $______________ ________% of 1.b

This number represents total planned subcontract dollars under this contract that will be awarded to subcontractors who are small business concerns owned and controlled by service-disabled veterans. (Included in totals for 2.b and 2.f, above)

h. AbilityOne $______________ ________% of l.b.

This number represents total planned subcontract dollars that will be awarded to AbilityOne associated nonprofit agencies through SourceAmerica and NIB. Per DFARS 219.703, subcontracts awarded to qualified non-profit agencies for the blind or severely disabled may be counted toward the small business subcontracting goal. (Included in total for 2.b, above)

i. Alaskan Native Corporations & Indian Tribes $______________ ________% of l.b.

This number represents total planned subcontract dollars that will be awarded to ANCs and Indian Tribes and for which the prime contractor has been designated to receive SDB credit. ***(See FAR 19.703 & FAR 52.219-9)*** (Included in totals for 2.b and 2.e, above)

3. The following principal products and/or services will be subcontracted under this contract. ***(See FAR 19.704(a)(3)***

a. Products/services planned to be subcontracted to LB concerns (including HBCU/MIs):

____

____

Firm subcontract commitments:

Name of Company/Unique Entity ID	Products or Services
________________________	________________________
________________________	________________________

b. Products/services planned to be subcontracted to SB concerns:

____

____

Firm subcontract commitments:

Name of Company/Unique Entity ID	Products or Services
________________________	________________________
________________________	________________________

c. Products/services planned to be subcontracted to certified HUBZone concerns:

____

____

Firm subcontract commitments:

Name of Company/Unique Entity ID	Products or Services
________________________	________________________
________________________	________________________

d. Products/services planned to be subcontracted to WOSB concerns:

____

____

Firm subcontract commitments:
Name of Company/Unique Entity ID | Products or Services

______________________ ______________________

______________________ ______________________

e. Products/services planned to be subcontracted to SDB concerns:

____

____

Firm subcontract commitments:
Name of Company/Unique Entity ID | Products or Services

______________________ ______________________

______________________ ______________________

f. Products/services planned to be subcontracted to VOSB concerns:

____

____

Firm subcontract commitments:
Name of Company/Unique Entity ID | Products or Services

______________________ ______________________

______________________ ______________________

g. Products/services planned to be subcontracted to SDVOSB concerns:

____

____

Firm subcontract commitments:
Name of Company/Unique Entity ID | Products or Services

______________________ ______________________

______________________ ______________________

h. Products/services planned to be subcontracted to AbilityOne organizations:

____

____

Firm subcontract commitments:

Name of Organization/Unique Entity ID | Products or Services

________________________ ______________________

________________________ ______________________

i. Planned products/services to be subcontracted to ANCs and Indian Tribe businesses (See 2.i above for explanation):

____

____

Firm subcontract commitments:

Name of Company/Unique Entity ID | Products or Services

________________________ ______________________

________________________ ______________________

4. The following methods were used to develop the above subcontracting goals. *Include a statement explaining how the products and services to be subcontracted were established, how the products and services to be subcontracted to SB, SDB, WOSB, HUBZone, VOSB, SDVOSB concerns, AbilityOne program participants, ANCs and Indian Tribes were determined, and how their capabilities were assessed.* ***(See FAR 19.704(a)(4))***

____

____

____

5. The following methods were/will be used to identify potential sources for solicitation purposes: ***(See FAR 19.704(a)(5))*** *The offeror may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB source list. Use of SAM as a source list does not relieve the offeror of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities.*

____

____

____

6. Indirect and overhead costs ☐ have ☐ have not been included in the goals specified in 1. and 2. above. *If "have" is checked, explain the method used in determining the proportionate share of indirect costs to be incurred with SBs (including all subcategories delineated above).* ***(See FAR 19.704(a)(6))***

____

____

____

7. The following employee will administer the subcontracting program: ***(See FAR 19.704(a)(7))***

NAME:____

ADDRESS:____

TELEPHONE NO.:_____________________

EMAIL:____

TITLE: ____

This individual has general overall responsibility for the company's small business program. This person should have knowledge of the federal small business programs and be knowledgeable about federal procurement practices. If the prime decides to change the person in this position, they must notify the Contracting Officer and the Small Business Professional. The administrator is responsible for the development, preparation and execution of this subcontracting plan, and for monitoring performance relative to contractual subcontracting requirements contained in this plan, including:

a. Developing and maintaining bidders lists of SB, SDB, WOSB, HUBZone SB, VOSB, SDVOSB concerns, AbilityOne program participants, HBCU/MIs, ANCs, and Indian Tribes (hereafter referred to as the small business community) from all possible sources.
b. Counsel and discuss subcontracting opportunities with representatives of the small business community.
c. Ensuring that procurement packages are structured to permit the small business community to participate to the maximum extent possible.
d. Assuring inclusion of the small business community in all solicitations for products or services, which they are capable of providing.
e. Reviewing solicitations to remove statements, clauses, etc., which may tend to restrict or prohibit the small business community participation.
f. Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.
g. Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by SBA in accordance with 52.219-8(d)(2).
h. Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the subcontracting plan.
i. Ensuring periodic rotation of potential subcontractors on bidders lists.
j. Ensuring that the bid proposal review board documents its reasons for not selecting low bids submitted by the small business community.

k. Ensuring the establishment and maintenance of records of solicitations and subcontract award activity.
l. Attending or arranging for attendance of company counselors at Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, etc.
m. Conducting or arranging for the motivational training for purchasing personnel pursuant to the intent of P.L. 95-507.
n. Monitoring attainment of proposed goals.
o. Preparing and submitting required periodic subcontracting reports.
p. Coordinating contractor's activities during the conducting of compliance reviews by Federal agencies.
q. Coordinating the conduct of contractor's activities involving its small business subcontracting program.
r. Provide a list of additional duties or Check None☐.

____

____

8. The following efforts will be taken to ensure that the small business community will have an equitable opportunity to compete for subcontracts. ***(See FAR 19.704(a)(8))***

a. Outreach efforts will be made by identifying:
- Contacts with minority and small business trade associations.
- Contacts with business development organizations.
- Attendance at small and minority business procurement conference and trade fairs.

b. Sources will be requested from the System for Award Management (SAM) website available at https://www.sam.gov/ on the Internet.
Automated data base sources to be used, other than SAM, will be as follows.

____

____

c. The following internal efforts will be made to guide and encourage buyers:
(i) Workshops, seminars and training programs will be conducted.
(ii) Activities will be monitored to evaluate compliance with this subcontracting plan.
(iii) Arrange interviews with the small business community.

d. Describe how your small business database, source lists, guides, and other data will be maintained and utilized by buyers in soliciting subcontracts; e.g., rotation of firms in the data base, keeping data base current and useful.

____

____

9. Contractor Name will include FAR clause 52.219-8 of this contract entitled "Utilization of Small Business Concerns" in all subcontracts that offer further subcontracting opportunities, and Contractor Name will require all subcontractors (except small business concerns) that receive subcontracts in excess of the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of the clause at 52.219-9, Small Business Subcontracting Plan. Such plans will be reviewed by comparing them with the provisions of P.L. 95-507 and assuring that all minimum requirements of an acceptable

subcontracting plan have been satisfied. The acceptability of percentage goals shall be determined on a case-by-case basis depending on the supplies/services involved, the availability of potential small and small disadvantaged subcontractors, and prior experience. Once approved and implemented, plans will be monitored through the submission of periodic reports, and/or, as time and availability of funds permit, periodic visits to review subcontracting program progress. ***(See FAR 19.704(a)(9))***

10. Contractor Name will submit such periodic reports and cooperate in any studies or surveys as may be required by the contracting agency or the Small Business Administration in order to determine the extent of compliance by the offeror (contractor) with the subcontracting plan and with FAR clause 52.219-8. ***(See FAR 19.704(a)(10))***

Contractor Name will:

a. Submit the Individual Subcontract Report (ISR) and the Summary Subcontract Report (SSR) using the Electronic Subcontracting Reporting System (eSRS) at http://www.esrs.gov, following the instructions in the eSRS and FAR Clause 52.219-9.

1st reporting period – Oct 1 through March 31	Submit NLT 30 April
2nd reporting period – Apr 1 through September 30	Submit NLT 30 October

Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When a Contracting Officer rejects a report, a revised report shall be submitted within 30 days of the notice of report rejection.

A separate "Final" ISR is required at contract completion.

Upon award of the contract, the identity of the individual(s) responsible for acknowledging receipt or rejecting the ISR and the SSR will be provided to the awardee.

b. After November 30, 2017, include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite quantity contracts intended for use by multiple agencies;
c. Ensure that its large business subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using the eSRS;
d. Provide its prime contract number and its unique entity identifier, and the e-mail address of the Government or contractor official responsible for acknowledging or rejecting the reports, to all first-tier large business subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs;
e. Require that each large business subcontractor with a subcontracting plan provide the prime contract number and its own unique entity identifier, and the e-mail address of the Government or contractor official responsible for acknowledging or rejecting the reports, to its large business subcontractors with subcontracting plans; and
f. Ensure that the identified Contracting Officer and Small Business Professional assigned to the contract are included on the eSRS email notification distribution for each report.

Note 1: If contract value is $30,000 or more and the solicitation includes FAR Clause 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards, ensure additional reporting requirements are met in FFATA Subaward Reporting System (FSRS) in accordance with this clause.

11. Contractor Name will maintain at least the following types of records to document compliance with this subcontracting plan: ***(See FAR 19.704(a)(11))***

a. Source lists, guides, and other data identifying small business, HUBZone small business, women-owned small business, small disadvantaged business, veteran-owned small business and service-disabled veteran-owned small business.
b. Organizations contacted to locate small business, HUBZone small business, women-owned small business, small disadvantaged business, veteran-owned small business and service-disabled veteran-owned small business.
c. Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, indicating:
(i) whether small business, HUBZone SBs, WOSBs, SDBs, VOSBs and SDVOSBs were solicited, and if not, why not; and
(ii) reason why the award was not made to a small business concern.
(iii) written designations from ANCs or Indian Tribes, in accordance with FAR 19.703, if applicable.
d. Records to support other outreach efforts, e.g., contacts with small business trade associations, business development organizations, and attendance at small business procurement conferences and trade fairs, and veterans service organizations.
e. Maintain records of internal guidance and encouragement to buyers through:
(i) Workshops, seminars, training; and
(ii) Monitoring performance to evaluate compliance with the program's requirement.
f. On a contract-by-contract basis, records to support award data submitted by the contractor to the Government including the name, address, and business size of each subcontractor.

12. Contractor Name will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that the offeror used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. An offeror used a small business concern in preparing the bid or proposal if – ***(See FAR 19.704(a)(12))***

a. The offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the contract; or
b. The offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the offeror is awarded the contract.

13. Contractor Name will provide the Contracting Officer with a written explanation if the contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in paragraph 12 of this plan. This written explanation will be submitted to the Contracting Officer within 30 days of contract completion. ***(See FAR 19.704(a)(13))***

14. Contractor Name will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor. ***(See FAR 19.704(a)(14))***

15. Contractor Name will pay its small business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the Contracting Officer if the offeror pays a reduced or an untimely payment to a small business subcontractor (see 52.242-5). ***(See FAR 19.704(a)(15))***

*****END OF PLAN*****

The original copy of this plan will be included in the file and made a material part of the contract.

Copy to:
Small Business Professional
SBA Procurement Center Representative

BASE PERIOD AND OPTION YEAR SUBCONTRACTING GOALS
SOLICITATION (RFP NO. N62742-26-R-1300/CONTRACT NO. TBD)

	Base Period
1.a Total Contract	$___________
1.b Total Subcontracted	$___________
(% of Line 1.a)	% __________
1.c Total Prime	$___________
(% of Line 1.a)	% __________
2.a To LB	$___________
(% of Line 1.b)	% __________
2.b To SB	$___________
(% of Line 1.b)	% __________
2.c To HUBZone SB	$___________
(% of Line 1.b)	% __________
2.d To WOSB	$___________
(% of Line 1.b)	% __________
2.e To SDB	$___________
(% of Line 1.b)	% __________
2.f To VOSB	$___________
(% of Line 1.b)	% __________
2.g To SDVOSB	$___________
(% of Line 1.b)	% __________
2.h To AbilityOne	$___________
(% of Line 1.b)	%___________
2.i To ANCs/Indian Tribes	$___________
(% of Line 1.b)	%___________

Attachment 1

COMPLEMENTARY PRICING INFORMATION

DESCRIPTION	PRICE
Subtotal of Base Price (CLIN 0001) for the entire work for the Airfield Concrete Pavement (RE: C1/CS501) in accordance with the drawings and specifications but excluding work provided in another item.	$____________________
Subtotal of Base Price (CLIN 0001) for the sitework, outside the Airfield Concrete Pavement (RE: C1/CS501), complete in accordance with the drawings and specifications but excluding work described in another Item.	$____________________
TOTAL SHALL EQUAL CLIN 0001 of the PRICE PROPOSAL SCHEDULE	$____________________

NOTE: The Complementary Pricing Information is for Government information only. It will not be used for evaluation of prices or contract administration.

COMPANY LOGO

TRACKING#	
DATE:	

Memorandum for 36 SFS/S5/VISITOR CONTROL CENTER

From: COMPANY/**ROICC MCA**

Subject: Request Contractor Pass for Preproposal Site Visit - **RFP N62742-26-R-1300, FY24 AJJY183012 (P-012), PDI: North Aircraft Parking Ramp, Andersen Air Force Base, Guam**

1. The request is for Andersen Air Force Base access.

REQUESTED DATES	
START:	25 Mar 2026
END: *(max 1 year)*	25 Mar 2026
DAYS (check all that apply)	
☐ Su ☐ Mo ☐ Tu ☑ We ☐ Th ☐ Fr ☐ Sa	☐ 24/7
TIMES ACCESS DAYS/TIMES	
START:	0700
END:	1600

2. The request includes the following individuals. (See Attached Log Information). Individuals listed on the log will be issued a pass with the appropriate dates/times listed above.

3. If you have any questions or concerns, contact FIRST & LAST NAME, 123@EMAIL.COM or PHONE NUMBER.

///COMPANY REPRESENATIVE SIGNATURE///
SIGN AND PRINT NAME
COMPANY NAME
PHONE NUMBER

///AUTHORIZED SIGNATURE///
SIGN AND PRINT NAME
CONTRACTING OFFICER
PHONE NUMBER

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT LAST, FIRST MI	FBI	DOB YYYY-MM-DD	SSN 123-45-6789	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
1	QH							C	MG-Base Access
2	QH							C	MG-Base Access
3	QH							C	MG-Base Access
4	QH							C	MG-Base Access
5	QH							C	MG-Base Access
6	QH							C	MG-Base Access
7	QH							C	MG-Base Access
8	QH							C	MG-Base Access
9	QH							C	MG-Base Access
10	QH							C	MG-Base Access
11	QH							C	MG-Base Access
12	QH							C	MG-Base Access
13	QH							C	MG-Base Access
14	QH							C	MG-Base Access
15	QH							C	MG-Base Access
16	QH							C	MG-Base Access
17	QH							C	MG-Base Access
18	QH							C	MG-Base Access
19	QH							C	MG-Base Access
20	QH							C	MG-Base Access
21	QH							C	MG-Base Access
22	QH							C	MG-Base Access
23	QH							C	MG-Base Access
24	QH							C	MG-Base Access
25	QH							C	MG-Base Access
26	QH							C	MG-Base Access
27	QH							C	MG-Base Access
28	QH							C	MG-Base Access
29	QH							C	MG-Base Access
30	QH							C	MG-Base Access

How To Fill Out The III Log

36 SFS / VCC Andersen AFB

The Good

- Examples of III Logs

The Good

- The <u>only</u> fields that need to be filled out are the Subject, DOB, and SSN

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT LAST, FIRST MI	FBI	DOB	SSN	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
1	QH			Doe, Jane		1990-12-31	123-45-6789	C	MG-Base Access
2	QH			Doe, John		1989-01-01	987-65-4321	C	MG-Base Access
3	QH			Smith, Jane		1987-11-01	547-89-6321	C	MG-Base Access
4	QH			Smith, John		1988-07-01	123-69-8745	C	MG-Base Access

A Closer Look

- Format is key
  - The Subject is Last Name, First Name
  - The Subject's should be A to Z
  - The Date of Birth is YYYY-MM-DD (26 Feb 1988= 1988-02-26)
  - The Social Security Number needs to be the full number

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT LAST, FIRST MI	FBI	DOB	SSN	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
1	QH			Doe, Jane		1990-12-31	123-45-6789	C	MG-Base Access
2	QH			Doe, John		1989-01-01	987-65-4321	C	MG-Base Access
3	QH			Smith, Jane		1987-11-01	547-89-6321	C	MG-Base Access
4	QH			Smith, John		1988-07-01	123-69-8745	C	MG-Base Access

A Closer Look

- Don’t worry about how many personal you put on the form.
- Even if its one person, <u>Do Not</u> change the format

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT	FBI	DOB	SSN	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
1	QH			Smith, John		19880101	123456789	C	MG-Base Access
2	QH							C	MG-Base Access
3	QH							C	MG-Base Access
4	QH							C	MG-Base Access
5	QH							C	MG-Base Access
6	QH							C	MG-Base Access
7	QH							C	MG-Base Access
8	QH							C	MG-Base Access
9	QH							C	MG-Base Access
10	QH							C	MG-Base Access
11	QH							C	MG-Base Access
12	QH							C	MG-Base Access
13	QH							C	MG-Base Access
14	QH							C	MG-Base Access
15	QH							C	MG-Base Access
16	QH							C	MG-Base Access
17	QH							C	MG-Base Access
18	QH							C	MG-Base Access
19	QH							C	MG-Base Access
20	QH							C	MG-Base Access
21	QH							C	MG-Base Access
22	QH							C	MG-Base Access
23	QH							C	MG-Base Access
24	QH							C	MG-Base Access
25	QH							C	MG-Base Access
26	QH							C	MG-Base Access
27	QH							C	MG-Base Access
28	QH							C	MG-Base Access
29	QH							C	MG-Base Access
30	QH							C	MG-Base Access

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT	FBI	DOB	SSN	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
1	QH			Smith, John		19880101	123456789	C	MG-Base Access

And The Bad

- Examples of incorrect III Logs

The Bad

- <u>Do not </u>fill in any of the other fields

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT	FBI	DOB	SSN	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
1	QH	Company name	20150226	Smith, John	12345abc	19880101	123456789	C	MG-Base Access
2	QH	Company name	20150226	Smith, Jane	adb54321	19871212	987654321	C	MG-Base Access
3	QH							[illegible]	MG-Base Ac[illegible]s
4	Q[illegible]								MG-Base A[illegible]s

The Bad

- Do not add anything to the document
- Only the Names, DOB, and SSN are needed

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT (Last Name, First Name)	FBI	DOB	SSN	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
1	QH			Doe, Jane		19880101	123456789	C	MG-Base Access
2	QH			Smith, John		19771111	123698745	C	MG-Base Access
3	QH			***Nothing else follows***				C	MG-Base Access
4	QH							C	MG-Base Access

The Bad

- Format is key
  - Keep the Subjects in alphabetical order
  - Type the Subjects Last Name, First Name
  - If They Have no SSN, Leave it Blank
  - Do not give only the last 4 of their SSN
  - Do not change the format of the dates

SUBJECT	FBI	DOB	SSN
Smith, John		01 Jan 1988	123456789
smith, jane		12Dec87	987-65-4321
john doe		1978Feb02	No SSN
doe, jane maire		19771111	XXXXX8745

Remember…

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT LAST, FIRST MI	FBI	DOB	SSN	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
1	QH			Doe, Jane		1990-12-31	123-45-6789	C	MG-Base Access
2	QH			Doe, John		1989-01-01	987-65-4321	C	MG-Base Access
3	QH			Smith, Jane		1987-11-01	547-89-6321	C	MG-Base Access
4	QH			Smith, John		1988-07-01	123-69-8745	C	MG-Base Access

The Good

The Bad

RN	REQUEST TYPE QH/QR	III REQUESTER	DATE OF REQUEST	SUBJECT	FBI	DOB	SSN	PUR CODE C/ J/ F/ H/ D	SPECIFIC REASON FOR III REQUEST LIST ASSOCIATED INVESTIGATION AND INDICATE IF QUERY MADE AT TIME OF ARREST
31	QH	Company name	20150226	Smith, John		01 Jan 1988	123456789	C	MG-Base Access
32	QH	Company name	20150226	smith, jane		12Dec87	987-65-4321	C	MG-Base Access
33	QH	Company name	20150227	john doe		1978Feb02	No SSN	C	MG-Base Access
34	QH	Company name	20150227	doe, jane maire		19771111	XXXXX8745	C	MG-Base Access

If you have any questions

- Contact us at
  - 366-5650/1/2/3
  - 36sfs.vcc@us.af.mil

Revised on 14 Mar 2024 **USAF Base Access Affidavit**

This data will be used to screen individuals who have or are seeking access to US Air Force installations or facilities controlled by the US Air Force. Please answer each question. Access will be denied if this questionnaire is incomplete or missing from the Contractor Access packet. This information will be used to generate state and federal criminal history records checks.

A. PERSONAL INFORMATION

1. NAME (PRINT LAST, FIRST, MIDDLE): ______________________________ 2. EMAIL: ______________________

3. FULL MAIDEN NAME OR ALIAS: ______________________ 4. SEX: ________ 5. SSAN: ________ 6. DATE OF BIRTH: ________

7. RACE: ________ 8. HAIR COLOR: ________ 9. EYE COLOR: ________ 10. HEIGHT: ________ 11. WEIGHT: ________

12. DRIVERS LICENSE #: ________ 13. STATE: ________ 14. HOME AND CELL PHONE #: ______________________

15. CURRENT AND ON-ISLAND RESIDENCE ADDRESS: ____

16. CITY: ________ 17. STATE: ________ 18. ZIP CODE: ________ 19. HOW MANY YEARS ON ISLAND: ________

B. PLACE OF BIRTH:

CITY: ________ STATE: ________ COUNTRY: ________ CITIZENSHIP: ________

C. CRIMINAL HISTORY (Check Appropriate YES/NO Box)

1. Have you ever been barred from entry/access to any military installation or facility? ☐ YES ☐ NO
   Date ____________ **Installation** ____________
2. Are you wanted by federal or civilian law enforcement authorities, regardless of offense or violation? ☐ YES ☐ NO
   (i.e., has a judge issued an order for your arrest?)
3. Have you ever been convicted of a firearms or explosives violation? ☐ YES ☐ NO
4. Have you ever been incarcerated for 12 months or longer? ☐ YES ☐ NO
5. Have you ever been convicted of espionage, sabotage, treason or terrorism, murder, assault, sexual assault, Armed assault or robbery, rape, child molestation, drug possession, or drug distribution? YES ☐ NO ☐

D. IMMIGRATION/WORKING STATUS (<u>attach copies of all documentation</u>)

Circle appropriate answer, and provide proper numbers.

3. Do you have a VISA? ☐ YES ☐ NO VISA # ______________________
   A. What type of VISA? ☐ Immigration VISA ☐ Non-Immigration VISA
   B. What VISA Classification? ☐ H2 ☐ W1 ☐ B1 Other_____
4. Do you have a Form I-551 (Resident Alien/Green Card)? ☐ YES ☐ NO I-551 # ______________________
5. Do you have an I-94? ☐ YES ☐ NO I-94 # ______________________
6. Do you have an Employment Authorization Document or WAC? ☐ YES ☐ NO EAD/WAC # ______________________
7. Do you have other Immigration Documents? ☐ YES ☐ NO Document & # ______________________
   (If YES, list type of document and number)

NOTE TO APPLICANT: ATTESTATION

I attest to the fact that I have been briefed by my employer and understand the purpose for the background check. I understand the information on this form is being collected in accordance with 50 U.S.C., Section 797, and DoDD 5200.8 federal laws permitting the installation commander to limit access to the installation for security reasons and that this data will be used to screen personnel who have or are seeking access to US Air Force installations. I have voluntarily completed this "Form" and shall provide the Air Force a specimen of my fingerprints, if/when requested. I understand that by signing this application, I acknowledge that I have been made aware of and have reviewed that Air Force's list of "disqualifying factors" above. I hereby give my consent and authorization for the Air Force to conduct any additional background screenings deemed necessary over the next 12 months, to include comparing/checking my fingerprints against local, state, and federal criminal databases. The information I have provided on this application is true, complete, and correct to the best of my knowledge and belief, and is provided in good faith. I understand that a knowing and willful false statement on this application can be punished by a fine or imprisonment or both. (18 U.S.C. Section 1001)

Applicant Signature: ______________________ Date: ______________________

Office Name: ______________________ Office Number: ______________________

Processing Officer: ______________________

Date Modified: 25 Apr 2024

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 36TH WING (PACAF)
ANDERSEN AIR FORCE BASE GUAM

Foreign National Access Request Form

Contractor Request

Date Approved: ________________

APPROVED BY: ________________________ **CONTRACT TRACKING #:** __________________ **FVR NUMBER:** ________

	PROJECT COORDINATOR	CONTRACTING OFFICER
First Name		
Last Name:		
Contact Phone Number:		
Email Address:		
Organization:		

Visitor's intended location on Andersen:				
	Visitor 1	**Visitor 2**	**Visitor 3**	**Visitor 4**
First Name:				
Last Name:				
Date of Birth:	____/______/____ DD / MMM / YYYY	____/______/____ DD / MMM / YYYY	____/______/____ DD / MMM / YYYY	____/______/____ DD / MMM / YYYY
Country of Citizenship:				
Identification Type	☐ Passport ☐ I-94 ☐ U.S. Visa ☐ Other:______	☐ Passport ☐ I-94 ☐ U.S. Visa ☐ Other:______	☐ Passport ☐ I-94 ☐ U.S. Visa ☐ Other:______	☐ Passport ☐ I-94 ☐ U.S. Visa ☐ Other:______
Occupation:				
Place of Employment:				
Relationship to Escort:				
How long is your stay on Andersen AFB?	From:____/____/____ DD MMM YYYY To:____/____/____ DD MMM YYYY	From:____/____/____ DD MMM YYYY To:____/____/____ DD MMM YYYY	From:____/____/____ DD MMM YYYY To:____/____/____ DD MMM YYYY	From:____/____/____ DD MMM YYYY To:____/____/____ DD MMM YYYY
Purpose of visit to Andersen?				
Address while on Guam:	________ Street ______, Guam ____ City Zip	________ Street ______, Guam ____ City Zip	________ Street ______, Guam ____ City Zip	________ Street ______, Guam ____ City Zip

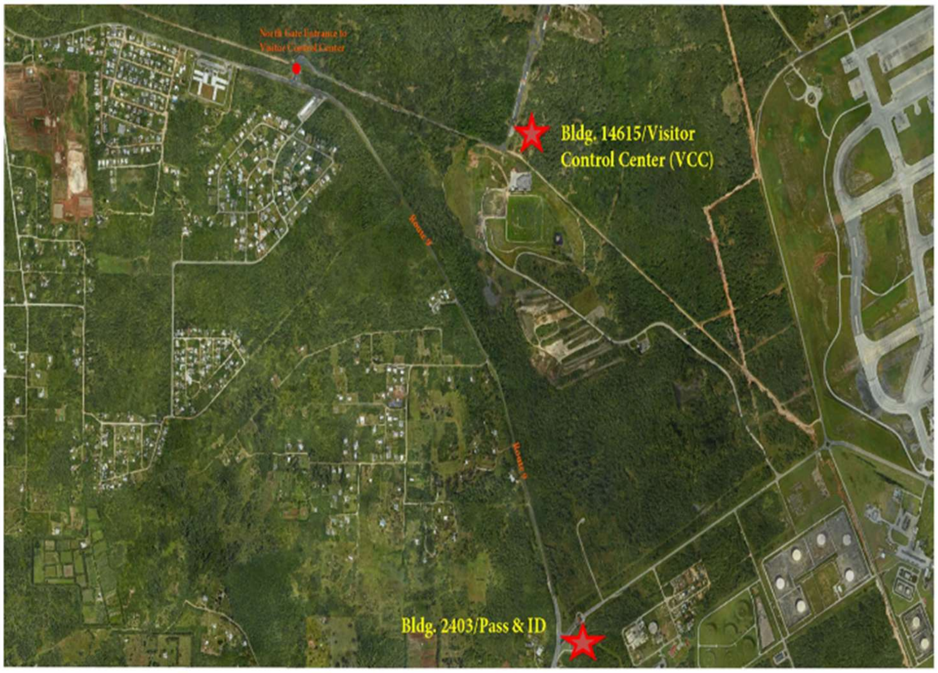
PRIVACY ACT STATEMENT: AUTHORITY: Title 5 USC Section 301, Departmental Regulation
Principle Purpose: To record personal information and determine access to the installation
ROUTINE PURPOSE: To request and record the issuance of a Visitor Pass when the use of another form is not authorized or specified. Failure to provide any information requested may result in non-issuance of the Visitor Pass. Disclosure of information is voluntary acceptance of these terms constitutes approval for a background check to be conducted as part of the request approval process. The information is necessary for validation of identity and determination of entry eligibility on to Andersen Air Force Base. Failure to provide this information may result in non-issuance determination by the issuing authority.

RFP N62742-26-R-1300
WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP,
ANDERSEN AIR FORCE BASE, GUAM

INFORMATION FOR APPROVAL OF CAMERA PASS

Company Name and Address	Attendee's Name	Position Title

ANDERSEN AIR FORCE BASE



The Visitor Control Center is located outside the North Gate in Bldg. 14615

The Pass and ID office is located outside the Main Gate in Bldg. 2403

DOCUMENT 00 22 00

EVALUATION FACTORS FOR AWARD

TABLE OF CONTENTS

PART I. GENERAL

1.1 INTENT TO AWARD WITHOUT DISCUSSIONS

The Government intends to evaluate proposals and award a contract without discussions with Offerors (except clarifications as described in FAR 15.306 (a)). Therefore, the initial proposal shall conform to the solicitation requirements and should contain the best offer from a technical and price standpoint.

Only the three (3) lowest-priced proposals will be evaluated for fair and reasonable pricing and technical acceptability. If none of the three (3) lowest-priced proposals are found to be technically acceptable, then the next three (3) lowest-priced proposals will be evaluated for technical acceptability. If none of the six (6) lowest priced proposals are found to be technically acceptable, then all remaining proposals will be evaluated for technical acceptability.

The Government intends to select the lowest reasonably priced technically acceptable offer and award a contract (within the funds available) without conducting discussions.

1.2 COMPETITIVE RANGE

The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines discussions are necessary, the Contracting Officer may conduct discussions with Offerors determined to be in the competitive range. The Government may limit the number of proposals in the competitive range to the most highly rated. If the Contracting Officer determines the number of proposals in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

1.3 ENFORCEABILITY OF PROPOSAL

The proposal must set forth full, accurate and complete information as required by this solicitation. The Government will rely on such information in the award of a contract. The awardee's proposal will be incorporated into the contract and all items proposed will become binding requirements of the contract. By submission of the offer, the Offeror agrees that all items proposed (e.g., subcontractors with teaming agreements, etc.) will be utilized for the duration of the contract and any substitutions must be equal or better and will require prior approval by the Contracting Officer.

PART II. EVALUATION FACTORS / RATING SCHEME

2.1 EVALUATION CRITERIA AND BASIS OF AWARD

The contract resulting from this solicitation will be awarded to that responsible Offeror whose offer, conforming to the solicitation, is determined to be the lowest evaluated price of proposals (within the funds available) meeting the acceptability standards for the technical evaluation factors. An overall technical factor rating must be at least "ACCEPTABLE" in order to be considered for award. An "UNACCEPTABLE" rating in any factor will result in the overall technical proposal being rated "UNACCEPTABLE" unless corrected through discussions. An overall technical rating of "UNACCEPTABLE" will make a proposal ineligible for award.

2.2 PRICE EVALUATION

a. One or more of the following techniques may be used to evaluate the total evaluated price to ensure that it is fair and reasonable:

- Comparison of proposed prices received in response to the solicitation
- Comparison of proposed prices with the Independent Government Estimate

2.3 TECHNICAL EVALUATION FACTORS

The following evaluation factors shall be used to evaluate the technical proposals.

FACTOR 1: EXPERIENCE
FACTOR 2: PAST PERFORMANCE
FACTOR 3: SAFETY

FACTOR 1 – EXPERIENCE:

(a) Solicitation Submittal Requirements:

The Offeror shall complete the attached Construction Experience Project Data Sheet (Attachment A) for each project submitted and complete all individual blocks. Attachment A and all information therein is MANDATORY and SHALL be used to evaluate experience. The Government will evaluate only the information provided in Attachment A and all other information provided on other than Attachment A will not be considered. The Offeror may expand individual blocks on the Attachment A; however, Attachment A for each project submitted shall not exceed a total of four (4) single-sided pages [or, two (2) double-sided pages], 8.5" x 11", 1" margin left/right/top/bottom, and 10-point font or larger. Information exceeding the four (4) single-sided pages [or two (2) double-sided pages] will not be evaluated. For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP.

Submit a **maximum** of three (3) construction projects that best demonstrates the Offeror's experience that are similar in size, scope, and complexity to the types of projects described below. If the Offeror submits more than three (3) projects for evaluation, the Government will evaluate the first three (3) projects submitted and disregard any other project information after the first three (3).

RELEVANT CONSTRUCTION PROJECT: For purposes of this evaluation, a relevant construction project is defined as a construction project that **includes at least one of the following individual features**:

(1) **Airfield Portland Cement Concrete (PCC) Pavement**: New construction of an airfield (aircraft runway, taxiway, or apron) Portland Cement Concrete (PCC) pavement of at least 20,000 square meters with a minimum concrete thickness of 300 mm. Flexible pavement construction will not be considered. Relevant projects must have been completed or substantially completed no earlier than fifteen (15) years from the date of issuance of this solicitation and shall be approximately $30 million or more in dollar value.

(2) **Aviation Fuel System:** New construction of an aviation fuel system consisting of fuel pits and underground piping that transports aviation fuel to aircraft and is approximately $2 million or more in construction value. For projects where the aviation fuel system is a portion of the overall project, the Offeror must clearly identify that the value of the aviation fuel system is approximately $2 million or more. Projects submitted to demonstrate Aviation Fuel System will only be considered if the work was performed by the specific entity proposed for the Aviation Fuel System, as identified in Block 1 of Attachment (A). Relevant projects must have been completed or substantially completed no earlier than ten (10) years from the date of issuance of this solicitation. See also Notes 2 and 3 below.

NOTES:

1. "Substantially completed" is defined as at least 90% physical completion.

2. Projects submitted to demonstrate the above relevant construction individual feature for (2) Aviation Fuel System, will only be considered if the work was performed by the specific entity proposed to perform that type of work in this contract.

3. If the Offeror self-performed the above relevant construction individual feature for (2) Aviation Fuel Systems, then the offeror must confirm that it will self-perform the same relevant individual feature(s) in order to be considered.

4. The relevant construction projects submitted shall collectively demonstrate experience in all individual features (1) and (2). Failure to demonstrate experience in all individual features shall be considered a deficiency and an unacceptable rating will be assigned for this factor. All individual features, or multiple individual features, do not have to be within a single project scope.

5. A relevant construction project is further defined as a construction project performed under a single task order or contract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a task order as a project.

6. There is a clear distinction between "experience" and "past performance". Experience is related to the types and amounts of projects previously accomplished. Past performance relates to how well a contractor has performed.

7. The "Offeror" is defined as the exact name in Block 14 of the Solicitation, Offer and Award (SF1442). If the Offeror is utilizing experience and past performance information of **any entity other than (1) the Offeror; (2) if the Offeror is a joint venture, its joint venture partners jointly and severally liable for the contract; or (3) a firm that has been acquired by the Offeror and is now part of the Offeror**, the Offeror shall provide in its proposal a fully-executed teaming agreement or other contractual agreement. The teaming agreement or other contractual agreement shall, at a minimum, (1) be signed by the Offeror and the other entity, (2) specifically reference this solicitation/contract, and (3) specify the work to be performed by the other entity such that it is clear that the other entity will be meaningfully involved in this contract. For item (3), clearly state the specific commitments of resources of the other entity in terms of the work it will specifically perform or manage in the performance of the contract at the worksite. Note that generalized statements concerning commitment of resources are not sufficient to demonstrate that an entity will be meaningfully involved in the performance of the contract. Examples of "generalized statements" include a commitment of resources merely based on an entity's "access" to resources and other generalized statements such as an entity will "provide support and expertise on the project." The government will only consider information provided in the teaming agreement for the purpose of determining whether the Offeror has clearly demonstrated that any entity (other than the Offeror and, if the offeror is a joint venture, its joint venture partners jointly and severally liable for the contract) will have meaningful involvement in the performance of the contract. For experience and past performance information of a firm that has been acquired and is no longer a separate legal entity, provide an explanation of the acquisition sufficient to demonstrate 1) that the predecessor firm is now part of the entity identified in Block 1 of Attachment A, and 2) that entity currently possesses assets and personnel from the predecessor firm sufficient for the predecessor firm's experience and past performance to be reasonably predictive of the entity's performance on this contract.

(b) Basis of Evaluation:

The basis of evaluation and acceptability include the Offeror's demonstrated experience in performing relevant construction projects involving the two (2) individual features as defined in the Solicitation Submittal Requirements and Part II, paragraph 2.4 below.

FACTOR 2 – PAST PERFORMANCE:

(a) Solicitation Submittal Requirements:

If a completed Contractor Performance Assessment Reporting System (CPARS) or Construction Contractor Appraisal Support System (CCASS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 1. If a completed CPARS or CCASS evaluation is not available, then submit Past Performance Questionnaires (Attachment B) for each project included in Factor 1. Past Performance Questionnaire (PPQ) shall be completed and signed by the contracting agent and/or their representative responsible for the construction contract administration. A PPQ shall not be from a prime contractor to a subcontractor. The Offeror shall provide completed PPQs in the proposal. Offerors may submit PPQs previously submitted for other solicitations.

Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 1. Offerors may also address any adverse past performance issues. Explanations shall not exceed two (2) double-sided pages (or four (4) single-sided pages) in total.

<u>NOTES:</u>

1. The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the Offeror's references or the references unwillingness to provide the information requested may affect the Government's evaluation of this factor. In addition, the Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources including sources outside of the Government. Other sources may include, but are not limited to, past performance information retrieved through the CPARS using all UEI/CAGE numbers of Contractors who are part of a partnership or joint venture identified in the Offeror's proposal, inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the Offeror.

2. Performance awards, letter of appreciation, certificates, or additional information submitted will not be considered.

3. See Notes for Factor 1.

(b) Basis of Evaluation:

The Offeror's past performance will be evaluated on how well the Offeror performed on the relevant projects submitted under Factor 1 – Experience and past performance on other relevant construction projects currently documented in known sources. In addition to the above, the Government may consider information in the Offeror's proposal as well as information gathered from other sources including former customers, Government agencies, Federal databases and other references. The information provided by the Offeror may provide the major portion of the information used in the Government's evaluation for past performance. The Government however, is not restricted to the information provided by the Offeror and may use other sources (such as those listed in the submittal requirements) to assess past performance information.

The Government will consider the currency and relevance of the information, the source of the information, and the context of the data in the Offeror's performance. This evaluation is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the Offeror's past performance will be used as a means of evaluating the Offeror's probability to successfully meet the requirements of the RFP.

Offerors lacking relevant past performance history will not be evaluated favorably or unfavorably in past performance. The Offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, unknown past performance shall be considered "acceptable".

The basis of evaluation will consider the Offeror's performance record that demonstrates the Offeror's ability to successfully perform the required effort or the Offeror's performance record is unknown or neutral. See also paragraph 2.4 below.

<u>Factor 3 – Safety</u>

(a) Solicitation Submittal Requirements:

The Offeror shall submit the following information: The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rates and Total Case Rates (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative, as described below. For a partnership, joint venture, and LLC the Offeror shall submit separate DART rates and TCR rates for the specified five (5) CY for each contractor who is part of the partnership/joint venture/LLC; however, only one safety narrative is required. Offerors must provide an explanation for any rates higher than 2.99 (DART) and/or 4.49 (TCR) and the actions taken to prevent future occurrences. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTES:

1. If Offeror does not have OSHA DART or TCR rates, they must submit equivalent DART and TCR rates by utilizing the OSHA formulas shown below.

2. DART and TCR shall not be submitted for subcontractors.

MISHAP RATES

1. DART Rate: Submit five (5) previous, complete calendar years' [2025, 2024, 2023, 2022, and 2021] worth of data (not an overall average). If the Offeror has no DART rate, for any year, affirmatively state so and explain why.

a. DART cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

b. Calculation of DART rate: Multiply the total number of DART cases by 200,000, and then divide by the number of employee labor hours worked.

$$\boldsymbol{DART\ RATE} = \frac{\text{Number of DART Cases x 200,000}}{\text{Total Number of Employee Labor Hours Worked}}$$

2. TCR Rate: Submit five (5) previous, complete calendar years' [2025, 2024, 2023, 2022, and 2021] worth of data (not an overall average). If the Offeror has no TCR rate, for any year, affirmatively state so and explain why.

a. TCR incidents include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000, and then divide by the number of employee labor hours worked.

$$\boldsymbol{TCR\ RATE} = \frac{\text{Number of TCR Incidents x 200,000}}{\text{Total Number of Employee Labor Hours Worked}}$$

TECHNICAL APPROACH NARRATIVE

3. Technical Approach to Safety: Submit a narrative that addresses the following:

a. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

b. Describe a methodical process of evaluating subcontractor's safety performance in their selection process.

c. Describe a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.

4. There is no page limitation to address the Mishap Rates section above. The narrative to address the Technical Approach to Safety above shall not exceed two (2) pages, single-sided, 8.5" x 11", 1" margin left/right/top/bottom, and 10-point font or larger. Narrative pages shall contain the page number.

5. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(b) Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. To meet the minimum requirements, the Offeror must demonstrate the following:

1. DART rates at or below **2.99**

2. TCR Rates at or below **4.49**

The basis of evaluation and acceptability are DART rates of 2.99 or less for five previous calendar years (2025, 2024, 2023, 2022, and 2021); TCR rates of 4.49 or less for the five previous calendar years (2025, 2024, 2023, 2022, and 2021); and an acceptable Technical Approach to Safety as defined in the Solicitation Submittal Requirements for Factor 3 and Paragraph 2.4 below.

NOTE: If the Offeror's rates exceed 2.99 (DART) and/or 4.49 (TCR) for any of the five calendar years, or the Offeror fails to provide acceptable explanations for any rates that exceed these levels and the action(s) taken to correct or prevent any safety issues, this will result in a deficiency.

2.4 RATING SCHEME

The following information is pertinent to the rating of the technical proposals:

(a) Deficiency: A material failure of the proposal to meet a Government requirement.

(b) If the proposal contains an **"UNACCEPTABLE"** rating for any of the Factors, the overall rating of the technical proposal will be "**UNACCEPTABLE".** An overall technical rating of "UNACCEPTABLE makes a proposal ineligible for award.

FACTOR 1 – EXPERIENCE AND FACTOR 3 – SAFETY

ACCEPTABLE	Proposal meets the requirements of the solicitation.
UNACCEPTABLE	Proposal does not meet the requirements of the solicitation.

FACTOR 2 – PAST PERFORMANCE

ACCEPTABLE	Based on the Offeror's performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort, or the Offeror's performance record is unknown. **Note:** In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305(a)(2)(iv)). Therefore, the Offeror shall be determined to have unknown or neutral past performance. In the context of acceptability/unacceptability neutral shall be considered "acceptable."

UNACCEPTABLE	Based on the Offeror's performance record, the Government does not have a reasonable expectation that the Offeror will be able to successfully perform the required effort.

ATTACHMENT A

CONSTRUCTION EXPERIENCE PROJECT DATA SHEET

Project No. (check one) : ☐ CON #1 ☐ CON #2 ☐ CON #3

1. Name of Entity that Performed Project: ______________________________
Address: ______________________________
Phone Number: ______________________________ SAM UEI: ______________________________
Point of Contact: ______________________________ Contact Phone Number: ______________________________

a. If the Entity (named above) that performed the project has been acquired and is no longer a separate legal entity, provide the name of the Acquiring Firm and an explanation of the acquisition sufficient to demonstrate 1) that the Entity is now part of the Acquiring Firm, and 2) that the Acquiring Firm currently possesses assets and personnel from the Entity sufficient for the Entity's experience and past performance to be reasonably predictive of the Acquiring Firm's performance on this contract.

Name of Acquiring Firm: ______________________________ UEI of Acquiring Firm: ______________

Acquisition Terms:

b. Name of Entity that Performed Work that Experience is Claimed for (i.e.; if the project was performed by a Joint Venture (JV) and Offeror is claiming experience of one of the J/V members that performed work on the project, state the exact legal name of the JV member the Offeror claims experience for):

____
Address: ______________________________
Phone Number: ______________________________ Entity Identifier (DUNS #): ______________________________
Point of Contact: ______________________________ Contact Phone Number: ______________________________

2. Work Performed as: ☐ Prime Contractor ☐ Sub Contractor ☐ Joint Venture ☐ Other (Explain)

Percent of project work performed:
If subcontractor, who was prime (Name/Phone #):

3. Contract Number: Delivery/Task Order Number:

Title:
Location:

4. Award Date (mm/dd/yy): Completion Date (mm/dd/yy):

5. Type of work: ☐ New Construction ☐ Renovation ☐ Repair ☐ Alteration ☐ Other (explain):

6. Type of Contract/Task Order: (**Check ALL that apply**)

☐ Firm-Fixed Price ☐ Cost/Time and Material ☐ Other (explain):

7. Construction Project:

Total Construction Award Amount: $___________________ **Final Construction Price: $______________________**

Type of Contract/Task Order: (**Check ALL that apply**)

☐ Design-Build ☐ Design-Bid-Build ☐ Delivery/Task Order (IDIQ) ☐ Other (explain):

8. Construction Project Details: Offerors shall complete the following information for each relevant individual feature: (For each item checked, provide a detailed description of the work in Block 9).

a. For Airfield Portland Cement Concrete (PCC) Pavement:
- Was PCC Pavement for an aircraft runway, taxiway or apron? [ ] Yes [ ] No
- Square meters of pavement: ___________
- Minimum concrete thickness: ____________

b. For Aviation Fuel System:
- Firm identified in Block 1 above is the specific entity proposed to perform the work in this contract: [ ] Yes [ ] No
- Construction included fuel pits and underground piping that transports aviation fuel to aircraft: [ ] Yes [ ] No
- Cost of the Aviation Fuel System: $________________

9. **Provide a detailed description of the project and the relevancy to the project requirements of this RFP (i.e.: unique features, square footage, construction methods, any problems encountered and how it was resolved).**

ATTACHMENT B

NAVFAC/USACE PAST PERFORMANCE QUESTIONNAIRE (Form PPQ-0)

CONTRACT INFORMATION (Contractor to complete Blocks 1-4)

1. Contractor Information
Firm Name: CAGE Code:
Address: SAM UEI:
Phone Number:
Email Address:
Point of Contact: Contact Phone Number:

2. Work Performed as: ☐ Prime Contractor ☐ Sub Contractor ☐ Joint Venture ☐ Other (Explain)
Percent of project work performed:
If subcontractor, who was the prime (Name/Phone #):

3. Contract Information
Contract Number:
Delivery/Task Order Number (if applicable):
Contract Type: ☐ Firm Fixed Price ☐ Cost Reimbursement ☐ Other (Please specify):
Contract Title:
Contract Location:

Award Date (mm/dd/yy):
Contract Completion Date (mm/dd/yy):
Actual Completion Date (mm/dd/yy):
Explain Differences:

Original Contract Price (Award Amount):
Final Contract Price (*to include all modifications, if applicable*):
Explain Differences:

4. Project Description:
Complexity of Work ☐ High ☐ Med ☐ Routine
How is this project relevant to project of submission? (*Please provide details such as similar equipment, requirements, conditions, etc.*)

CLIENT INFORMATION (Client to complete Blocks 5-8)

5. Client Information
Name:
Title:
Phone Number:
Email Address:

6. Describe the client's role in the project:

7. Date Questionnaire was completed (mm/dd/yy)**:**

8. Client's Signature:

NOTE: NAVFAC PACIFIC (ACQ33) REQUESTS THAT THE CLIENT COMPLETES THIS QUESTIONNAIRE AND SUBMITS DIRECTLY BACK TO THE OFFEROR. THE OFFEROR WILL SUBMIT THE COMPLETED QUESTIONNAIRE TO NAVFAC PACIFIC (ACQ33) WITH THEIR PROPOSAL, AND MAY DUPLICATE THIS QUESTIONNAIRE FOR FUTURE SUBMISSION ON NAVFAC PACIFIC SOLICITATIONS. CLIENTS ARE HIGHLY ENCOURAGED TO SUBMIT QUESTIONNAIRES DIRECTLY TO THE OFFEROR. HOWEVER, QUESTIONNAIRES MAY BE SUBMITTED DIRECTLY TO NAVFAC PACIFIC (ACQ33). PLEASE CONTACT THE OFFEROR FOR NAVFAC PACIFIC (ACQ33) POC INFORMATION. THE GOVERNMENT RESERVES THE RIGHT TO VERIFY ANY AND ALL INFORMATION ON THIS FORM.

ADJECTIVE RATINGS AND DEFINITIONS TO BE USED TO BEST REFLECT YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE		
(E) Exceptional	Performance meets contractual requirements and exceeds many to the Government/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor was highly effective.	An Exceptional rating is appropriate when the Contractor successfully performed multiple significant events that were of benefit to the Government/Owner. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
(VG) Very Good	Performance meets contractual requirements and exceeds some to the Government's/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the contractor were effective.	A Very Good rating is appropriate when the Contractor successfully performed a significant event that was a benefit to the Government/Owner. There should have been no significant weaknesses identified.
(S) Satisfactory	Performance meets minimum contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.	A Satisfactory rating is appropriate when there were only minor problems, or major problems that the contractor recovered from without impact to the contract. There should have been NO significant weaknesses identified. Per DOD policy, a fundamental principle of assigning ratings is that contractors will not be assessed a rating lower than Satisfactory solely for not performing beyond the requirements of the contract.
(M) Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.	A Marginal is appropriate when a significant event occurred that the contractor had trouble overcoming which impacted the Government/Owner.
(U) Unsatisfactory	Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the contractor's corrective actions appear or were ineffective.	An Unsatisfactory rating is appropriate when multiple significant events occurred that the contractor had trouble overcoming and which impacted the Government/Owner. A singular problem, however, could be of such serious magnitude that it alone constitutes an unsatisfactory rating.
(N) Not Applicable	No information or did not apply to your contract	Rating will be neither positive nor negative.

Contractor Information (Firm Name): ____

Client Information (Name): ____

TO BE COMPLETED BY CLIENT

PLEASE CIRCLE THE ADJECTIVE RATING WHICH BEST REFLECTS YOUR EVALUATION OF THE						
1. QUALITY:						
a) Quality of technical data/report preparation efforts	E	VG	S	M	U	N
b) Ability to meet quality standards specified for technical performance	E	VG	S	M	U	N
c) Timeliness/effectiveness of contract problem resolution without extensive customer guidance	E	VG	S	M	U	N
d) Adequacy/effectiveness of quality control program and adherence to contract quality assurance requirements (without adverse effect on performance)	E	VG	S	M	U	N
2. SCHEDULE/TIMELINESS OF PERFORMANCE:						
a) Compliance with contract delivery/completion schedules including any significant intermediate milestones. *(If liquidated damages were assessed or the schedule was not met, please address below)*	E	VG	S	M	U	N
b) Rate the contractor's use of available resources to accomplish tasks identified in the contract	E	VG	S	M	U	N
3. CUSTOMER SATISFACTION:						
a) To what extent were the end users satisfied with the project?	E	VG	S	M	U	N
b) Contractor was reasonable and cooperative in dealing with your staff (including the ability to successfully resolve disagreements/disputes; responsiveness to administrative reports, businesslike and communication)	E	VG	S	M	U	N
c) To what extent was the contractor cooperative, businesslike, and concerned with the interests of the customer?	E	VG	S	M	U	N
d) Overall customer satisfaction	E	VG	S	M	U	N
4. MANAGEMENT/ PERSONNEL/LABOR						
a) Effectiveness of on-site management, including management of subcontractors, suppliers, materials, and/or labor force?	E	VG	S	M	U	N
b) Ability to hire, apply, and retain a qualified workforce to this effort	E	VG	S	M	U	N
c) Government Property Control	E	VG	S	M	U	N
d) Knowledge/expertise demonstrated by contractor personnel	E	VG	S	M	U	N
e) Utilization of Small Business concerns	E	VG	S	M	U	N
f) Ability to simultaneously manage multiple projects with multiple disciplines	E	VG	S	M	U	N
g) Ability to assimilate and incorporate changes in requirements and/or priority, including planning, execution and response to Government changes	E	VG	S	M	U	N
h) Effectiveness of overall management (including ability to effectively lead, manage and control the program)	E	VG	S	M	U	N

5. COST/FINANCIAL MANAGEMENT						
a) Ability to meet the terms and conditions within the contractually agreed price(s)?	E	VG	S	M	U	N
b) Contractor proposed innovative alternative methods/processes that reduced cost, improved maintainability or other factors that benefited the client	E	VG	S	M	U	N
c) If this is/was a Government cost type contract, please rate the Contractor's timeliness and accuracy in submitting monthly invoices with appropriate back-up documentation, monthly status reports/budget variance reports, compliance with established budgets and avoidance of significant and/or unexplained variances (under runs or overruns)	E	VG	S	M	U	N
d) Is the Contractor's accounting system adequate for management and tracking of costs? *If no, please explain in Remarks section.*	Yes			No		
e) If this is/was a Government contract, has/was this contract been partially or completely terminated for default or convenience or are there any pending terminations? *Indicate if show cause or cure notices were issued, or any default action in comment section below.*	Yes			No		
f) Have there been any indications that the contractor has had any financial problems? *If yes, please explain below.*	Yes			No		
6. SAFETY/SECURITY						
a) To what extent was the contractor able to maintain an environment of safety, adhere to its approved safety plan, and respond to safety issues? (Includes: following the users rules, regulations, and requirements regarding housekeeping, safety, correction of noted deficiencies, etc.)	E	VG	S	M	U	N
b) Contractor complied with all security requirements for the project and personnel security requirements.	E	VG	S	M	U	N
7. GENERAL						
a) Ability to successfully respond to emergency and/or surge situations (including notifying COR, PM or Contracting Officer in a timely manner regarding urgent contractual issues).	E	VG	S	M	U	N
b) Compliance with contractual terms/provisions *(explain if specific issues)*	E	VG	S	M	U	N
c) Would you hire or work with this firm again? *(If no, please explain below)*	Yes			No		
d) In summary, provide an overall rating for the work performed by this contractor.	E	VG	S	M	U	N

Please provide responses to the questions above (*if applicable*) and/or additional remarks. Furthermore, please provide a brief narrative addressing specific strengths, weaknesses, deficiencies, or other comments which may assist our office in evaluating performance risk *(please attach additional pages if necessary)*:

DOCUMENT 00 45 00
REPRESENTATIONS AND CERTIFICATIONS FOR CONTRACTING BY NEGOTIATION
10/25

-- End Document Table of Contents--

DOCUMENT 00 45 00
REPRESENTATIONS AND CERTIFICATIONS FOR CONTRACTING BY NEGOTIATION
10/25

Request for Proposal No.: RFP N62742-26-R-1300

Name and Address of Offeror: ______________________________

____

____

Business Phone: (___) ______________ **Facsimile Phone:** (___) ______________

CEC/UEI Number: ______________ **TIN NUMBER:** ______________

CAGE Number: ______________ **Email Address:** ______________

1.1 SUMMARY

The following clauses are from the Federal Acquisition Regulations (FAR) and Department of Defense Federal Acquisition Regulation Supplement (DFARS). Complete the paragraphs below, and return with the proposal.

1.2 FAR 52.204-8, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025) / DFARS 252.204-7007, ALTERNATE A (OCT 2025)

(a) (1) The North American Industry Classification System (NAICS) code for this acquisition is **237310**.

(2) The small business size standard is ***$45.0 million***.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) (1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

___ (i) Paragraph (e) applies.

___ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless–

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $200,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that –

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA–designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $50,000, the basic provision applies.

(B) If the acquisition value is $50,000 or more but is less than $100,000, the provision with its Alternate II applies.

(C) If the acquisition value is $100,000 or more but is less than $102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer: [*Contracting Officer check as appropriate.*]

_X (i) 52.204-17, Ownership or Control of Offeror.
_X (ii) 52.204-20, Predecessor of Offeror.
__ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.
__ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
__ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
__ (vi) 52.227-6, Royalty Information.
__ (A) Basic.
__ (B) Alternate I.
__ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) (1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016 , Covered Defense Telecommunications Equipment or Services—Representation. Applies to all solicitations.

(ii) 252.216-7008 , Economic Price Adjustment—Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042 , Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049 , Prohibition on Acquisition of Certain Foreign Commercial Satellite Services—Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of $200,000 or more.

(vi) 252.229-7012 , Tax Exemptions (Italy)—Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013 , Tax Exemptions (Spain)—Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: *[Contracting Officer check as appropriate.]*

X (i) 252.209-7002 , Disclosure of Ownership or Control by a Foreign Government.
___ (ii) 252.225-7000 , Buy American—Balance of Payments Program Certificate.
___ (iii) 252.225-7020 , Trade Agreements Certificate.
___ Use with Alternate I.
X (iv) 252.225-7031 , Secondary Arab Boycott of Israel.
___ (v) 252.225-7035 , Buy American—Free Trade Agreements—Balance of Payments Program Certificate.
___ Use with Alternate I.
___ Use with Alternate II.
___ Use with Alternate III.
___Use with Alternate IV.
___ Use with Alternate V.
___ (vi) 252.226-7002 , Representation for Demonstration Project for Contractors Employing Persons with Disabilities.
___ (vii) 252.232-7015 , Performance-Based Payments—Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at https://www.sam.gov . After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204–8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

1.3 FAR 52.204-22, ALTERNATIVE LINE ITEM PROPOSAL (JAN 2017)

(a) The Government recognizes that the line items established in this solicitation may not conform to the Offeror's practices. Failure to correct these issues can result in difficulties in acceptance of deliverables and processing payments. Therefore, the Offeror is invited to propose alternative line items for which bids, proposals, or quotes are requested in this solicitation to ensure that the resulting contract is economically and administratively advantageous to the Government and the Offeror.

(b) The Offeror may submit one or more additional proposals with alternative line items, provided that alternative line items are consistent with subpart 4.10 of the Federal Acquisition Regulation. However, acceptance of an alternative proposal is a unilateral decision made solely at the discretion of the Government. Offers that do not comply with the line items specified in this solicitation may be determined to be nonresponsive or unacceptable.

1.4 FAR 52.204-24, REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition*.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

1.5 FAR 52.204-26, COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) *Representation.* The Offeror represents that it □ does, □ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

1.6 FAR 52.204-29, FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS—REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions*. As used in this provision, Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system, and Source have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition*. Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) *Procedures*. (1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(https://www.sam.gov) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable

FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures*. The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures*. The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

1.7 FAR 52.209-7, INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions*. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror _____ has _____ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in–

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

1.8 FAR 52.209-11, REPRESENTATION BY CORPORATIONS REGARDING DFELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that–

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that–

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

1.9 FAR 52.209-13, VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (NOV 2021)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification*. Offeror shall check either (1) or (2).

___ (1) The Offeror certifies that–

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; or

___ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless—

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies*. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

1.10 FAR 52.219-1, SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024), ALTERNATE I (FEB 2024)

(a) *Definitions*. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

(1) (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB

Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.
Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) The North American Industry Classification System (NAICS) code for this acquisition is **237310**.

(2) The small business size standard is **$45.0M**.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that—

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* ___________________________.]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a women-owned small business concern.

(4) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* ________________________.]

(5) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* __________________________.]

(6) *Veteran-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not an SDVOSB concern.

(8) *SDVOSB joint venture eligible under the SDVOSB Program*. [*Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision*]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:*_________________________.]

(9) *HUBZone small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____________________.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(10) [*Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.*] The offeror shall check the category in which its ownership falls:

☐ Black American.
☐ Hispanic American.
☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
☐ Individual/concern, other than one of the preceding.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

1.11 FAR 52.219-4, NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.

(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.

(b) *Waiver of evaluation preference*. A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.

☐ Offeror elects to waive the evaluation preference.

(c) *Joint venture*. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

1.12 DFARS 252.203-7005, REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022)

(a) *Definition.* "Covered DoD official" is defined in the clause at 252.203-7000, Requirements Relating to Compensation of Former DoD Officials.

(b) By submission of this offer, the Offeror represents, to the best of its knowledge and belief, that all covered DoD officials employed by or otherwise receiving compensation from the Offeror, and who are expected to undertake activities on behalf of the Offeror for any resulting contract, are presently in compliance with all applicable post-employment restrictions, including those contained in 18 U.S.C. 207, 41 U.S.C. 2101-2107, 5 CFR part 2641, section 1045 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), and Federal Acquisition Regulation 3.104-2.

1.13 DFARS 252.204-7008, COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016)

(a) *Definitions*. As used in this provision—

"Controlled technical information," "covered contractor information system," "covered defense information," "cyber incident," "information system," and "technical information" are defined in clause 252.204-7012 , Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause 252.204-7012 , shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see 252.204-7012 (b)(2)—

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (see http://dx.doi.org/10.6028/NIST.SP.800-171) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2) (i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of—

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

1.14 DFARS 252.204-7017, PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES—REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services—Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services—Representation, that it “does” provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it “will provide covered defense telecommunications equipment or services,” the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

1.15 DFARS 252.204-7019, NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)

(a) *Definitions*.

“Basic Assessment”, “Medium Assessment”, and “High Assessment” have the meaning given in the clause 252.204-7020, NIST SP 800-171 DoD Assessments.

“Covered contractor information system” has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this solicitation.

(b) *Requirement.* In order to be considered for award, if the Offeror is required to implement NIST SP 800–171, the Offeror shall have a current assessment (*i.e.,* not more than 3 years old unless a lesser time is specified in the solicitation) (see 252.204–7020) for each covered contractor information system that is relevant to the offer, contract, task order, or delivery order. The Basic, Medium, and High NIST SP 800–171 DoD Assessments are described in the NIST SP 800–171 DoD Assessment Methodology located at https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf.

(c) *Procedures*.

(1) The Offeror shall verify that summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk System (SPRS) () for all covered contractor information systems relevant to the offer.

(2) If the Offeror does not have summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the Offeror may conduct and submit a Basic Assessment to for posting to SPRS in the format identified in paragraph (d) of this provision.

(d) *Summary level scores*. Summary level scores for all assessments will be posted 30 days post-assessment in SPRS to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) *Basic Assessments*. An Offeror may follow the procedures in paragraph (c)(2) of this provision for posting Basic Assessments to SPRS.

(i) The email shall include the following information:

(A) Cybersecurity standard assessed (e.g., NIST SP 800-171 Rev 1).

(B) Organization conducting the assessment (e.g., Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract—

(1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(2) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(ii) If multiple system security plans are addressed in the email described at paragraph (d)(1)(i) of this section, the Offeror shall use the following format for the report:

System Security Plan	CAGE Codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total Score	Date score of 110 will achieved

(2) *Medium and High Assessments*. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system assessed:

(i) The standard assessed (e.g., NIST SP 800-171 Rev 1).

(ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) A brief description of the system security plan architecture, if more than one system security plan exists.

(v) Date and level of the assessment, i.e., medium or high.

(vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).

(vii) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(3) *Accessibility*.

(i) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(ii) Authorized representatives of the Offeror for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(iii) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this section. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

1.16 DFARS 252.219-7000, ADVANCING SMALL BUSINESS GROWTH (JUN 2023)

(a) This provision implements 10 U.S.C. 4959.

(b) The Offeror acknowledges by submission of its offer that by acceptance of the contract resulting from this solicitation, the Offeror may exceed the applicable small business size standard of the North American Industry Classification System (NAICS) code assigned to the contract and would no longer qualify as a small business concern for that NAICS code. Small business size standards matched to industry NAICS codes are published by the Small Business Administration and are available at 13 CFR 121.201 and https://www.sba.gov/document/support-table-size-standards. The Offeror is therefore encouraged to develop the capabilities and characteristics typically desired in contractors that are competitive as other-than-small contractors in this industry.

(c) For procurement technical assistance, the Offeror may contact the nearest APEX Accelerator. APEX Accelerator locations are available at https://www.apexaccelerators.us .

1.17 DFARS 252.223-7997, PROHIBITION ON PROCUREMENT OF CERTAIN ITEMS CONTAINING PERFLUOROOCTANE SULFONATE OR PERFLUOROOCTANOIC ACID —REPRESENTATION—REPRESENTATION (DEVIATION 2022-O0010) (SEP 2022)

(a) Effective April 1, 2023, in accordance with section 333 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Pub. L. 116-283) the Department of Defense may not procure any covered items that contain perfluorooctane sulfonate (PFOS) or perfluorooctanoic acid (PFOA). A covered item is defined as:

(1) Nonstick cookware or cooking utensils for use in galleys or dining facilities; and

(2) Upholstered furniture, carpets, and rugs that have been treated with stain-resistant coatings.

(b) *Representation*. By submission of its offer, the Offeror represents that it is not providing as part of its offer any covered items containing PFOS or PFOA.

1.18 DFARS 252.225-7055, REPRESENTATION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (MAY 2022)

(a) Definitions. As used in this provision—

Agency or instrumentality of the government of Venezuela, business operations, government of Venezuela, and person have the meaning given in the clause 252.225-7056, Prohibition Regarding Business Operations with the Maduro Regime, of this solicitation.

(b) Prohibition. In accordance with section 890 of the National Defense Authorization Act for Fiscal Year 2020 (Pub. L. 116-92), DoD is prohibited from entering into a contract for the procurement of products or services with any person that has business operations with an authority of the government of Venezuela that is not recognized as the legitimate government of Venezuela by the U.S. Government, unless the person has a valid license to operate in Venezuela issued by the Office of Foreign Assets Control of the Department of the Treasury.

(c) Representation. By submission of its offer, the Offeror represents that the Offeror is a person that—

(1) Does not have any business operations with an authority of the Maduro regime or the government of Venezuela that is not recognized as the legitimate government of Venezuela by the U.S. Government; or

(2) Has a valid license to operate in Venezuela issued by the Office of Foreign Assets Control of the Department of the Treasury.

1.19 DFARS 252.225-7057, PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (AUG 2022)

(a) *Definitions*. As used in this provision—

"Covered contract" and "covered entity" have the meaning given in the clause 252.225-7058, Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.

(b) *Prohibition on award*. In accordance with section 855 of the National Defense Authorization Act for Fiscal Year 2022 (Pub. L. 117-81, 10 U.S.C. 4651 note prec.), DoD may not award a contract to the Offeror if it is a covered entity and proposes to employ one or more individuals who will perform work in the People's Republic of China on a covered contract, unless the Offeror has disclosed its use of workforce and facilities in the People's Republic of China.

(c) *Preaward disclosure requirement*. At the time of submission of an offer for a covered contract, an Offeror that is a covered entity shall provide disclosures to include—

(1) The proposed use of workforce on a covered contract or subcontract, if the Offeror employs one or more individuals who perform work in the People's Republic of China;

(2) The total number of such individuals who will perform work in the People's Republic of China; and

(3) A description of the physical presence, including street address or addresses, in the People's Republic of China, where work on the covered contract will be performed.

1.20 DFARS 252.225-7059, PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION—REPRESENTATION (JUN 2023)

(a) *Definitions.* "Forced labor" and "XUAR", as used in this provision, have the meaning given in the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.

(b) *Prohibition.* DoD may not knowingly procure any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or transferred from XUAR as part of any forced labor programs, as specified in paragraph (b) of the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.

(c) *Representation.* By submission of its offer, the Offeror represents that it has made a good faith effort to determine that forced labor from XUAR will not be used in the performance of a contract resulting from this solicitation.

1.21 DFARS 252.225-7973, PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS—REPRESENTATION (AUG 2024) (DEVIATION 2024-O0014)

(a) *Definition*. As used in this provision, "covered foreign country" has the meaning given in the 252.225-7972, Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-O0014), clause of this solicitation.

(b) *Prohibition*. Section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 (Pub. L. 116-92) and section 817 of the NDAA for FY24 (Pub. L. 117-263) prohibits DoD from—

(1) Using or procuring an unmanned aircraft system (UAS), or any related services or equipment, that—

(i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign county;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a foreign country, or by an entity domiciled in a covered foreign country;

(iii) Uses a ground control system or operating software developed in a covered foreign county or by an entity domiciled in a covered foreign county; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign county;

(2) Using or procuring a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or

(3) On or after October 1, 2024, entering into or renewing a contract with an entity that operated, as determined by the Secretary of Defense, equipment from –

(i) Da-Jiang Innovations (or any subsidiary or affiliate of DaJiang Innovations); or

(ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce (https://www.trade.gov/consolidated-screening-list);

(iii) Any entity that produces or provides unmanned aircraft systems and –

(A) Is domiciled in a covered foreign country; or

(B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.

(b) *Representations*.

(1) By submission of its offer, the Offeror represents that —

(i) It will not provide or use a UAS, as described in paragraph (b)(1) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation; and

(ii) It will not provide or use a system for the detection or identification of a UAS, as described in paragraph (b)(2) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation.

(2) It is not an entity described in paragraph (b)(3) of this provision.

1.22 DFARS 252.225-7966, PROHIBITION REGARDING RUSSIAN FOSSIL FUEL BUSINESS OPERATIONS— REPRESENTATION (DEVIATION 2024-O0006, REVISION 1) (MAR 2024)

(a) Definitions. The terms business operations and fossil fuel company have the meanings given in the 252.225-7967 clause of this solicitation.

(b) Representation. By submission of an offer, the Offeror represents it is not, or that it does not knowingly have fossil fuel business operations with an entity or individual that is, 50 percent or more owned, individually or collectively, by—

(1) An authority of the government of the Russian Federation; or

(2) A fossil fuel company that operates in the Russian Federation, except if the fossil fuel company transports oil or gas—

(i) Through the Russian Federation for sale outside of the Russian Federation; and

(ii) That was extracted from a country other than the Russian Federation with respect to the energy sector of which the President has not imposed sanctions as of the date on which the contract is awarded.

1.23 DFARS 252.236-7010, OVERSEAS MILITARY CONSTRUCTION – PREFERENCE FOR UNITED STATES FIRMS (JAN 1997)

(a) *Definition.* "United States firm," as used in this provision, means a firm incorporated in the United States that complies with the following:

(1) The corporate headquarters are in the United States;

(2) The firm has filed corporate and employment tax returns in the United States for a minimum of 2 years (if required), has filed State and Federal income tax returns (if required) for 2 years, and has paid any taxes due as a result of these filings; and

(3) The firm employs United States citizens in key management positions.

(b) *Evaluation.* Offers from firms that do not qualify as United States firms will be evaluated by adding 20 percent to the offer.

(c) *Status.* The offeror ______ is, ______ is not a United States firm.

1.24 DFARS 252.239-7098, PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES—REPRESENTATION (DEVIATION 2021-O0003) (APR 2021)

(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) *Representation*. By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

-- End of Document--

DOCUMENT 00 70 00
NEGOTIATED
CONTRACT CLAUSES (ADVERTISE)
10/25

1.1 FAR 52.252-2, CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

FAR: https://www.acquisition.gov/browse/index/far
DFARS: https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html

1.2 FAR 52.202-1, DEFINITIONS (JUN 2020)
1.3 FAR 52.203-3, GRATUITIES (APR 1984)
1.4 FAR 52.203-5, COVENANT AGAINST CONTINGENT FEES (MAY 2014)
1.5 FAR 52.203-6, RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020)
1.6 FAR 52.203-7, ANTI-KICKBACK PROCEDURES (JUN 2020)
1.7 FAR 52.203-8, CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
1.8 FAR 52.203-10, PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
1.9 FAR 52.203-12, LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (JUN 2020)
1.10 FAR 52.203-13, CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021)
1.11 FAR 52.203-19, PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)
1.12 FAR 52.204-2, SECURITY REQUIREMENTS (MAR 2021) ALTERNATE II (APR 1984)
1.13 FAR 52.204-9, PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)
1.14 FAR 52.204-10, REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020)
1.15 FAR 52.204-13, SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)

1.16 FAR 52.204-18, COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)

(a) *Definition.* As used in this clause–

Commercial and Government Entity (CAGE) code means–

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

(b) Contractors shall ensure that the CAGE code is maintained throughout the life of the contract for each location of contract, including subcontract, performance. For contractors registered in the System for Award Management (SAM), the DLA Commercial and Government Entity (CAGE) Branch shall only modify data received from SAM in the CAGE master file if the contractor initiates those changes via update of its SAM registration. Contractors undergoing a novation or change-of-name agreement shall notify the contracting officer in accordance with subpart

42.12. The contractor shall communicate any change to the CAGE code to the contracting officer within 30 days after the change, so that a modification can be issued to update the CAGE code on the contract.

(c) Contractors located in the United States or its outlying areas that are not registered in SAM shall submit written fchange requests to the DLA Commercial and Government Entity (CAGE) Branch. Requests for changes shall be provided at https://cage.dla.mil. Change requests to the CAGE master file are accepted from the entity identified by the code.

(d) Contractors located outside the United States and its outlying areas that are not registered in SAM shall contact the appropriate National Codification Bureau (points of contact available at http://www.nato.int/structur/AC/135/main/links/contacts.htm) or NSPA at https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx to request CAGE changes.

(e) Additional guidance for maintaining CAGE codes is available at https://cage.dla.mil.

(f) If the contract includes Federal Acquisition Regulation clause 52.204-2, Security Requirements, the contractor shall ensure that subcontractors maintain their CAGE code(s) throughout the life of the contract.

1.17 FAR 52.204-19, INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

The Contractor's representations and certification, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

1.18 FAR 52.204-21, BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (NOV 2021)

(a) *Definitions*. As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (*i.e.*, information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) *Other requirements.* This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

1.19 FAR 52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB COVERED ENTITIES (DEC 2023)

1.20 FAR 52.204-25, PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

1.21 FAR 52.204-27, PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)

1.22 FAR 52.204-30, FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-PROHIBITION (DEC 2023)

1.23 FAR 52.209-6, PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)
1.24 FAR 52.209-9, UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)
1.25 FAR 52.209-10, PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (NOV 2015)
1.26 FAR 52.210-1, MARKET RESEARCH (NOV 2021)

1.27 FAR 52.211-10, COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to

(a) Commence work under this contract within **15** calendar days after the date the Contractor receives the notice to proceed,

(b) Prosecute the work diligently, and

(c) Complete the entire work ready for use not later than **1,479** calendar days after notice to proceed*.

The time stated for completion shall include final cleanup of the premises.

* A "Notice to Proceed" is deemed to be given by the Government to the Contractor 21 calendar days after the contract award date. No formal written notice will be issued by the Government. Within 21 calendar days following the contract award date, the Contractor is obligated to submit performance and payment bonds in a form acceptable to the Government. The Government shall notify the Contractor of the acceptability of the performance and payment bonds within 5 working days of receipt of these documents. If these documents are not submitted in their proper form acceptable to the Government within 21 calendar days of contract award, any delays resulting thereby will be at the sole expense of the Contractor. The contract completion date will not be extended due to the Government's review of the acceptability of the Contractor's bonds, except where the Government's review of said documents extends beyond 5 working days.

1.28 FAR 52.211-12, LIQUIDATED DAMAGES—CONSTRUCTION (SEP 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of **$45,865** for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

1.29 FAR 52.211-13, TIME EXTENSIONS (SEP 2000)
1.30 FAR 52.211-15, DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS (APR 2008)
1.31 FAR 52.211-18, VARIATION IN ESTIMATED QUANTITY (APR 1984)
1.32 FAR 52.215-2, AUDIT AND RECORDS--NEGOTIATION (JUN 2020)
1.33 FAR 52.215-11, PRICE REDUCTION FOR DEFECTIVE COST OR PRICING DATA-MODIFICATIONS (DEVIATION 2022-O0001) (OCT 2021)

1.34 FAR 52.215-13, SUBCONTRACTOR CERTIFIED COST OR PRICING DATA--MODIFICATIONS (DEVIATION 2022-O0001) (OCT 2021)

(a) The requirements of paragraphs (b) and (c) of this clause shall—

(1) Become operative only for any modification to this contract involving a pricing adjustment expected to exceed $2 million on the date of execution of the modification; and

(2) Be limited to such modifications.

(b) Before awarding any subcontract expected to exceed $2 million on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification involving a pricing adjustment expected to exceed $2 million, the Contractor shall require the subcontractor to submit certified cost or pricing data (actually or by specific identification in writing), in accordance with FAR 15.408, Table 15-2 (to include any information reasonably required to explain the subcontractor's estimating process such as the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data, and the nature and amount of any contingencies included in the price), unless an exception under FAR 15.403-1(b) applies. If the $2 million threshold for submission of certified cost or pricing data is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(c) The Contractor shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (b) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in each subcontract that exceeds $2 million on the date of agreement on price or the date of award, whichever is later.

1.35 FAR 52.215-15, PENSION ADJUSTMENTS AND ASSET REVERSIONS (OCT 2010)
1.36 FAR 52.215-18, REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS (JUL 2005)
1.37 FAR 52.215-19, NOTIFICATION OF OWNERSHIP CHANGES (OCT 1997)
1.38 FAR 52.215-21, REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA—MODIFICATIONS (NOV 2021)
1.39 FAR 52.219-4, NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)
1.40 FAR 52.219-8, UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)
1.41 FAR 52.219-9, SMALL BUSINESS SUBCONTRACTING PLAN (JAN 2025) ALTERNATE II (NOV 2016)
1.42 FAR 52.219-16, LIQUIDATED DAMAGES - SUBCONTRACTING PLAN (SEP 2021)
1.43 FAR 52.219-28, POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025)
1.44 FAR 52.222-1, NOTICE TO THE GOVERNMENT OF LABOR DISPUTES (FEB 1997)
1.45 FAR 52.222-3, CONVICT LABOR (JUN 2003)
1.46 FAR 52.222-4, CONTRACT WORK HOURS AND SAFETY STANDARDS--OVERTIME COMPENSATION (MAY 2018)
1.47 FAR 52.222-11, SUBCONTRACTS (LABOR STANDARDS) (MAY 2014)
1.48 FAR 52.222-12, CONTRACT TERMINATION-DEBARMENT (MAY 2014)
1.49 FAR 52.222-35, EQUAL OPPORTUNITY FOR VETERANS (JUN 2020)
1.50 FAR 52.222-36, EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020)
1.51 FAR 52.222-37, EMPLOYMENT REPORTS ON VETERANS (JUN 2020)
1.52 FAR 52.222-40, NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010)
1.53 FAR 52.222-50, COMBATING TRAFFICKING IN PERSON (OCT 2025)
1.54 FAR 52.222-54, EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025)
1.55 FAR 52.223-2, REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS (MAY 2024)
1.56 FAR 52.223-5, POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION (MAY 2024)
1.57 FAR 52.223-9, ESTIMATE OF PERCENTAGE OF RECOVERED MATERIAL CONTENT FOR EPA-DESIGNATED ITEMS (MAY 2008)

1.58 FAR 52.223-23, SUSTAINABLE PRODUCTS AND SERVICES (MAR 2025) (DEVIATION 2025-O0004)
1.59 FAR 52.224-1, PRIVACY ACT NOTIFICATION (APR 1984)
1.60 FAR 52.224-2, PRIVACY ACT (APR 1984)

1.61 FAR 52.225-11, BUY AMERICAN -- CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (NOV 2023)

(a) *Definitions.* As used in this clause—

Caribbean Basin country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is—

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Designated country means any of the following countries:

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if—

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029.

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are

treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components."

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) *Construction materials.* (1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

[NONE]

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that—

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(A)*(1)* of this clause.

(3) The procedures in paragraph (b)(4)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components.*

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(B)*(1)* of this clause.

(3) The procedures in paragraph (b)(4)(i)(B)*(2)* of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) *Request for determination of inapplicability of the Buy American statute.*

(1) (i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including—

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

FOREIGN AND DOMESTIC CONSTRUCTION MATERIALS PRICE COMPARISON

Construction material description	Unit of measure	Quantity	Price (dollars)[1]
Item 1:			
Foreign construction material			
Domestic construction material			

Item 2:			
Foreign construction material			
Domestic construction material			

[1]Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued).

List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.

Include other applicable supporting information.

1.62 FAR 52.225-13, RESTRICTIONS ON CERTAIN FOREIGN PURCHASES (FEB 2021)
1.63 FAR 52.226-7, DRUG-FREE WORKPLACE (MAY 2024)
1.64 FAR 52.226-8, ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
1.65 FAR 52.227-1, AUTHORIZATION AND CONSENT (JUN 2020)
1.66 FAR 52.227-2, NOTICE AND ASSISTANCE REGARDING PATENT & COPYRIGHT INFRINGEMENT (JUN 2020)
1.67 FAR 52.227-4, PATENT INDEMNITY -- CONSTRUCTION CONTRACTS (DEC 2007)

1.68 FAR 52.228-1, BID GUARANTEE (SEP 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds,

(1) to unsuccessful bidders as soon as practicable after the opening of bids, and

(2) to the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be 20 percent of the bid price or $3,000,000, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 21 days after award of the contract, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

1.69 FAR 52.228-2, ADDITIONAL BOND SECURITY (OCT 1997)
1.70 FAR 52.228-4, WORKER'S COMPENSATION AND WAR HAZARD INSURANCE OVERSEAS (APR 1984)
1.71 FAR 52.228-5, INSURANCE--WORK ON A GOVERNMENT INSTALLATION (JAN 1997)

1.72 FAR 52.228-11, PLEDGES OF ASSETS (APR 2020) (DEVIATION 2020-O0016)

(a) Offerors shall obtain from each person acting as an individual surety on a bid guarantee, a performance bond, or a payment bond—

(1) Pledge of assets and

(2) Standard Form 28, Affidavit of Individual Surety, , except that the words “being duly sworn, depose and say” on the Standard Form 28 are replaced with the word “affirm” and the Standard Form 28 is not required to be sworn and notarized in block 12.

(b) Pledges of assets from each person acting as an individual surety shall be in the form of ——

(1) *Evidence of an escrow account containing cash, certificates of deposit, commercial or Government securities, or other assets describe in FAR 28.203-2 (except see 28.208-2(b)(2) with respect to Government securities held in book entry form); and/or*.

(2) A recorded lien on the real estate. The offeror will be required to provide –

(i) A mortgagee title insurance policy, in an insurance amount equal to the amount of the lien, or other evidence of title that is consistent with the requirements of Section 2 of the United States Department of Justice Title Standards at https://www.justice.gov/enrd/page/file/922431/download. This title evidence must show fee simple title vested in the surety along with any concurrent owners; whether any real estate taxes are due and payable; and any recorded encumbrances against the property, including the lien filed in favor of the Government as required by FAR 28.203-3(d);

(ii) Evidence of the amount due under any encumbrance shown in the evidence of title.

(iii) A copy of the current real estate tax assessment of the property or a current appraisal dated no earlier than 6 months prior to the date of the bond, prepared by a professional appraiser who certifies that the appraisal has been conducted in accordance with the generally accepted appraisal standards as reflected in the Uniform Standards of Professional Appraisal Practice, as promulgated by the Appraisal Foundation.

1.73 FAR 52.228-12, PROSPECTIVE SUBCONTRACTOR REQUESTS FOR BONDS (DEC 2022)

1.74 FAR 52.228-14, IRREVOCABLE LETTER OF CREDIT (NOV 2014)

1.75 FAR 52.228-15, PERFORMANCE AND PAYMENT BONDS--CONSTRUCTION (APR 2020) (DEVIATION 2020-O0016)

(a) *Definitions*. As used in this clause-

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) *Amount of required bonds*. Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation 28.102-1(a) on the date of award of this contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) *Performance bonds (Standard Form 25*, except that no seal is required*)*. The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) *Payment Bonds (Standard Form 25A*, except that no seal is required*)*. The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) Additional bond protection. (i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) *Furnishing executed bonds*. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) *Surety or other security for bonds*. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the *Federal Register* or may be obtained from the:

U.S. Department of the Treasury,
Financial Management,
Service Surety Bond Branch,
3700 East West Highway,
Room 6 F01,
Hyattsville, MD 20782.
Or via the internet at http://www.fms.treas.gov/c570/.

(e) *Notice of subcontractor waiver of protection* (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

1.76 FAR 52.229-3, FEDERAL, STATE, AND LOCAL TAXES (FEB 2013)
1.77 FAR 52.232-5, PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS (MAY 2014)
1.78 FAR 52.232-17, INTEREST (MAY 2014)
1.79 FAR 52.232-23, ASSIGNMENT OF CLAIMS (MAY 2014)
1.80 FAR 52.232-27, PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS (JAN 2017)
1.81 FAR 52.232-33, PAYMENT BY ELECTRONIC FUNDS TRANSFER – SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
1.82 FAR 52.232-39, UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013)
1.83 FAR 52.232-40, PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
1.84 FAR 52.233-1, DISPUTES (MAY 2014) ALTERNATE I (DEC 1991)
1.85 FAR 52.233-3, PROTEST AFTER AWARD (AUG 1996)
1.86 FAR 52.233-4, APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004)

1.87 FAR 52.236-1, PERFORMANCE OF WORK BY THE CONTRACTOR (APR 1984)

The Contractor shall perform on the site, and with its own organization, work equivalent to at least twenty (20) percent of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the contractor requests a reduction and the Contracting Officer determines that the reduction would be to the advantage of the Government.

1.88 FAR 52.236-2, DIFFERING SITE CONDITIONS (APR 1984)
1.89 FAR 52.236-3, SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK (APR 1984)

1.90 FAR 52.236-4, PHYSICAL DATA (APR 1984)

Data and information furnished or referred to below is for the Contractor’s information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by Geo-Engineering & Testing conducted the field borings and testing. Jacobs Geotechnical Engineers utilized GET's field study to reflect the physical conditions on the drawings and in specifications. Duenas, Camacho, & Associates conducted the site utilities investigation and topographical survey.

(b) Weather conditions Standard Guam weather conditions are included in Div 01 Specifications.

(c) Transportation facilities Project site is located on Andersen Air Force Base requiring base access for each individual working on the project site. Contractor to provide transportation for construction workers.

1.91 FAR 52.236-5, MATERIAL AND WORKMANSHIP (APR 1984)
1.92 FAR 52.236-6, SUPERINTENDENCE BY THE CONTRACTOR (APR 1984)
1.93 FAR 52.236-7, PERMITS AND RESPONSIBILITIES (NOV 1991)
1.94 FAR 52.236-8, OTHER CONTRACTS (APR 1984)
1.95 FAR 52.236-9, PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS (APR 1984)
1.96 FAR 52.236-10, OPERATIONS AND STORAGE AREAS (APR 1984)
1.97 FAR 52.236-11, USE AND POSSESSION PRIOR TO COMPLETION (APR 1984)
1.98 FAR 52.236-12, CLEANING UP (APR 1984)
1.99 FAR 52.236-13, ACCIDENT PREVENTION (NOV 1991)
1.100 FAR 52.236-14, AVAILABILITY AND USE OF UTILITY SERVICES (APR 1984)
1.101 FAR 52.236-15, SCHEDULES FOR CONSTRUCTION CONTRACTS (APR 1984)
1.102 FAR 52.236-17, LAYOUT OF WORK (APR 1984)
1.103 FAR 52.236-21, SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION (FEB 1997) ALTERNATE I (APR 1984)
1.104 FAR 52.236-26, PRECONSTRUCTION CONFERENCE (FEB 1995)

1.105 FAR 52.240-1, PROHIBITION ON UNMANNED AIRCRAFT SYSTEMS MANUFACTURED OR ASSEMBLED BY AMERICAN SECURITY DRONE ACT-COVERED FOREIGN ENTITIES (NOV 2024)

(a) Definitions. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list developed and maintained by the Federal Acquisition Security Council (FASC) and published in the System for Award Management (SAM) at https://www.sam.gov (section 1822 of the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act-covered foreign entity.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) Prohibition. The Contractor is prohibited from—

(1) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.);

(2) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.); and

(3) On or after December 22, 2025, using Federal funds for the procurement or operation of a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(c) Procedures. The Contractor shall search SAM at https://www.sam.gov for the FASC-maintained list of American Security Drone Act-covered foreign entities prior to proposing, or using in performance of the contract, any unmanned aircraft system. Additionally, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(d) Exemptions, exceptions, and waivers. The prohibitions in this clause do not apply where the agency has determined an exemption, exception, or waiver applies and the contract indicates that such a determination has been made. [See sections 1823 through 1825 and 1832 of Public Law 118-31 (41 U.S.C. 3901 note prec.) for statutory requirements pertaining to exemptions, exceptions, and waivers.].

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

1.106 FAR 52.242-5, PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (JAN 2017)
1.107 FAR 52.242-13, BANKRUPTCY (JUL 1995)
1.108 FAR 52.242-14, SUSPENSION OF WORK (APR 1984)
1.109 FAR 52.243-4, CHANGES (JUN 2007)
1.110 FAR 52.243-6, CHANGE ORDER ACCOUNTING (APR 1984)
1.111 FAR 52.244-6, SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003)
1.112 FAR 52.246-12, INSPECTION OF CONSTRUCTION (AUG 1996)
1.113 FAR 52.246-21, WARRANTY OF CONSTRUCTION (MAR 1994)
1.114 FAR 52.248-3, VALUE ENGINEERING -- CONSTRUCTION (OCT 2025)
1.115 FAR 52.249-2, TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED – PRICE) (APR 2012) ALTERNATE I (SEP 1996)
1.116 FAR 52.249-10, DEFAULT (FIXED - PRICE CONSTRUCTION) (APR 1984)

1.117 FAR 52.252-4, ALTERATIONS IN CONTRACT (APR 1984)

Portions of this contract are altered as follows:

FAR 52.211-10, Commencement, Prosecution, and Completion of Work (APR 1984): Supplemental clarification of "Notice to Proceed."

FAR 52.222-11, Subcontracts (Labor Standards) (May 2014): Removed clauses listed in paragraph (b) that are not applicable to projects located in the Territory of Guam that are not under the Construction Wage Requirements Statute.

FAR 52.222-12, Contract Termination-Debarment (May 2014): Removed clauses not applicable to projects located in the Territory of Guam that are not under the Construction Wage Requirements Statute.

1.118 FAR 52.253-1, COMPUTER GENERATED FORMS (JAN 1991)
1.119 DFARS 252.201-7000, CONTRACTING OFFICER'S REPRESENTATIVE (DEC 1991)
1.120 DFARS 252.203-7000, REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2011)
1.121 DFARS 252.203-7001, PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023)
1.122 DFARS 252.203-7002, REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)

1.132 DFARS 252.204-7020, NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)

(a) *Definitions*.

Basic Assessment" means a contractor's self-assessment of the contractor's implementation of NIST SP 800-171 that—

(1) Is based on the Contractor's review of their system security plan(s) associated with covered contractor information system(s);

(2) Is conducted in accordance with the NIST SP 800-171 DoD Assessment Methodology; and

(3) Results in a confidence level of "Low" in the resulting score, because it is a self-generated score.

"Covered contractor information system" has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

"High Assessment" means an assessment that is conducted by Government personnel using NIST SP 800-171A, Assessing Security Requirements for Controlled Unclassified Information that—

(1) Consists of—

(i) A review of a contractor's Basic Assessment;

(ii) A thorough document review;

(iii) Verification, examination, and demonstration of a Contractor's system security plan to validate that NIST SP 800-171 security requirements have been implemented as described in the contractor's system security plan; and

(iv) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "High" in the resulting score.

"Medium Assessment" means an assessment conducted by the Government that—

(1) Consists of—

(i) A review of a contractor's Basic Assessment;

(ii) A thorough document review; and

(iii) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of “Medium” in the resulting score.

(b) *Applicability*. This clause applies to covered contractor information systems that are required to comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, in accordance with Defense Federal Acquisition Regulation System (DFARS) clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

(c) *Requirements.* The Contractor shall provide access to its facilities, systems, and personnel necessary for the Government to conduct a Medium or High NIST SP 800–171 DoD Assessment, as described in NIST SP 800–171 DoD Assessment Methodology at https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf , if necessary.

(d) *Procedures*. Summary level scores for all assessments will be posted in the Supplier Performance Risk System (SPRS) () to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) *Basic Assessments*. A contractor may submit, via encrypted email, summary level scores of Basic Assessments conducted in accordance with the NIST SP 800-171 DoD Assessment Methodology to for posting to SPRS.

(i) The email shall include the following information:

(A) Version of NIST SP 800-171 against which the assessment was conducted.

(B) Organization conducting the assessment (e.g., Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract—

(*1*) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(*2*) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(ii) If multiple system security plans are addressed in the email described at paragraph (b)(1)(i) of this section, the Contractor shall use the following format for the report:

System Security Plan	CAGE Codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total Score	Date score of 110 will achieved

(2) Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system security plan assessed:

(i) The standard assessed (e.g., NIST SP 800-171 Rev 1).

(ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) A brief description of the system security plan architecture, if more than one system security plan exists.

(v) Date and level of the assessment, i.e., medium or high.

(vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).

(vii) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(e) *Rebuttals*.

(1) DoD will provide Medium and High Assessment summary level scores to the Contractor and offer the opportunity for rebuttal and adjudication of assessment summary level scores prior to posting the summary level scores to SPRS (see SPRS User's Guide https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf).

(2) Upon completion of each assessment, the contractor has 14 business days to provide additional information to demonstrate that they meet any security requirements not observed by the assessment team or to rebut the findings that may be of question.

(f) *Accessibility*.

(1) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(2) Authorized representatives of the Contractor for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at.

(3) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this clause. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(g) Subcontracts.

(1) The Contractor shall insert the substance of this clause, including this paragraph (g), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services (excluding commercially available off-the-shelf).

(2) The Contractor shall not award a subcontract or other contractual instrument, that is subject to the implementation of NIST SP 800–171 security requirements, in accordance with DFARS clause 252.204–7012 of this contract, unless the subcontractor has completed, within the last 3 years, at least a Basic NIST SP 800–171 DoD Assessment, as described in https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf , for all covered contractor information systems relevant to its offer that are not part of an information technology service or system operated on behalf of the Government.

(3) If a subcontractor does not have summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the subcontractor may conduct and submit a Basic Assessment, in accordance with the NIST SP 800-171 DoD Assessment Methodology, to mailto:webptsmh@navy.mil for posting to SPRS along with the information required by paragraph (d) of this clause.

1.133 DFARS 252.204-7021, CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this clause—

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means—

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status—

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with—

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with—

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status—

(i) Not older than 1 year for Final Level 1 (Self), with—

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with—

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with—

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) Framework. The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) Duplication. The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) Requirements. The Contractor shall—

(1) (i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: **CMMC Level 1 (Self)** for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (https://piee.eb.mil) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) Reporting. The Contractor shall—

(1) Submit to the Contracting Officer—

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) Subcontracts. The Contractor shall—

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

1.134 DFARS 252.205-7000, PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (OCT 2024)

1.135 DFARS 252.209-7004, SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019)

1.136 DFARS 252.215-7013, SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)

1.137 DFARS 252.215-7016, NOTIFICATION TO OFFERORS – POSTAWARD DEBRIEFINGS (OCT 2025)

(a) Definition. As used in this provision—

" *Nontraditional defense contractor* " means an entity that is not currently performing and has not performed any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement (10 U.S.C. 3014).

(b) Postaward debriefing.

(1) Upon timely request, the Government will provide a written or oral postaward debriefing to successful or unsuccessful offerors for contract awards valued at $15 million or more, while protecting the confidential and proprietary information of other offerors. The request is considered timely if received within 3 days of notification of contract award.

(2) When required, the minimum postaward debriefing information will include the following:

(i) For contracts in excess of $15 million and not in excess of $150 million with a small business or nontraditional defense contractor, an option for the small business or nontraditional defense contractor to request disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(ii) For contracts in excess of $150 million, disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(3) If a required postaward debriefing is provided—

(i) The debriefed Offeror may submit additional written questions related to the debriefing not later than 2 business days after the date of the debriefing;

(ii) The agency will respond in writing to timely submitted additional questions within 5 business days after receipt by the contracting officer; and

(iii) The postaward debriefing will not be considered to be concluded until the later of—

(A) The date that the postaward debriefing is delivered, orally or in writing; or

(B) If additional written questions related to the debriefing are timely received, the date the agency delivers its written response.

(c) Contract performance. The Government may suspend performance of or terminate the awarded contract upon notice from the Government Accountability Office of a protest filed within the time periods listed in paragraphs (c)(1) through (3) of this provision, whichever is later:

(1) Within 10 days after the date of contract award.

(2) Within 5 days after a debriefing date offered to the protestor under a timely debriefing request in accordance with Federal Acquisition Regulation (FAR) 15.506 unless an earlier debriefing date is negotiated as a result.

(3) Within 5 days after a postaward debriefing under FAR 15.506 is concluded in accordance with Defense Federal Acquisition Regulation Supplement 215.506-70 (b).

1.138 DFARS 252.219-7003, SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS)—BASIC (DEC 2019)

This clause supplements the Federal Acquisition Regulation 52.219-9, Small Business Subcontracting Plan, clause of this contract.

(a) *Definitions.* As used in this clause—

"Summary Subcontract Report (SSR) Coordinator" means the individual who is registered in the Electronic Subcontracting Reporting System (eSRS) at the Department of Defense level and is responsible for acknowledging receipt or rejecting SSRs submitted under an individual subcontracting plan in eSRS for the Department of Defense.

(b) Subcontracts awarded to qualified nonprofit agencies designated by the Committee for Purchase From People Who Are Blind or Severely Disabled (41 U.S.C. 8502-8504), may be counted toward the Contractor's small business subcontracting goal (section 8025 of Pub. L. 108-87).

(c) A mentor firm, under the Pilot Mentor-Protege Program established under section 831 of Public Law 101-510, as amended, may count toward its small disadvantaged business goal, subcontracts awarded to—

(1) Protege firms which are qualified organizations employing the severely disabled; and

(2) Former protege firms that meet the criteria in section 831(g)(4) of Public Law 101-510.

(d) The master plan is approved by the Contractor's cognizant contract administration activity for the Contractor.

(e) In those subcontracting plans which specifically identify small businesses, the Contractor shall notify the Administrative Contracting Officer of any substitutions of firms that are not small business firms, for the small business firms specifically identified in the subcontracting plan. Notifications shall be in writing and shall occur within a reasonable period of time after award of the subcontract. Contractor-specified formats shall be acceptable.

(f)(1) For DoD, the Contractor shall submit reports in eSRS as follows:

(i) The Individual Subcontract Report (ISR) shall be submitted to the contracting officer at the procuring contracting office, even when contract administration has been delegated to the Defense Contract Management Agency.

(ii) Submit the consolidated SSR for an individual subcontracting plan to the "Department of Defense."

(2) For DoD, the authority to acknowledge receipt or reject reports in eSRS is as follows:

(i) The authority to acknowledge receipt or reject the ISR resides with the contracting officer who receives it, as described in paragraph (f)(1)(i) of this clause.

(ii) The authority to acknowledge receipt of or reject SSRs submitted under an individual subcontracting plan resides with the SSR Coordinator.

(g) Include the clause at Defense Federal Acquisition Regulation Supplement (DFARS) 252.219-7004, Small Business Subcontracting Plan (Test Program), in subcontracts with subcontractors that participate in the Test Program described in DFARS 219.702-70, if the subcontract is expected to exceed the applicable threshold specified in Federal Acquisition Regulation 19.702(a) and to have further subcontracting opportunities.

1.139 DFARS 252.222-7006, RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023)
1.140 DFARS 252.223-7001, HAZARD WARNING LABELS (DEC 1991)
1.141 DFARS 252.223-7006, PROHIBITION ON STORAGE, TREATMENT AND DISPOSAL OF TOXIC OR HAZARDOUS MATERIALS—BASIC (SEP 2014)
1.142 DFARS 252.223-7008, PROHIBITION OF HEXAVALENT CHROMIUM (JAN 2023)

1.143 DFARS 252.223-7998, PROHIBITION ON PROCUREMENT OF CERTAIN ITEMS CONTAINING PERFLUOROOCTANE SULFONATE OR PERFLUOROOCTANOIC ACID (DEVIATION 2022-O0010) (APR 2023)

(a) Effective April 1, 2023, in accordance with section 333 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year2021 (Pub. L. 116-283), the Department of Defense may not procure any covered items that contain perfluorooctane sulfonate (PFOS) or perfluorooctanoic acid(PFOA).

(b) A covered item means the following:

(1) Nonstick cookware or cooking utensils for use in galleys or dining facilities.

(2) Upholstered furniture, carpets, and rugs that have been treated with stain-resistant coatings.

(c) The Contractor shall not provide any covered items containing PFOS or PFOA in performance of this contract, task order, delivery order, or blanket purchase agreement order.

(d) The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts for any covered item, including subcontracts for commercial products (including commercially available off-the-shelf items) and commercial services.

1.144 DFARS 252.225-7005, IDENTIFICATION OF EXPEDITURES IN THE UNITED STATES (JUN 2005)
1.145 DFARS 252.225-7012, PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES (APR 2022)
1.146 DFARS 252.225-7041, CORRESPONDENCE IN ENGLISH (JUN 1997)
1.147 DFARS 252.225-7048, EXPORT-CONTROLLED ITEMS (JUN 2013)

1.148 DFARS 252.225-7052, RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN (MAY 2024)

(a) *Definitions.* As used in this clause—

"Assembly" means an item forming a portion of a system or subsystem that—

(1) Can be provisioned and replaced as an entity; and

(2) Incorporates multiple, replaceable parts.

"Commercially available off-the-shelf item"—

(1) Means any item of supply that is—

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" in section 2.101 of the Federal Acquisition Regulation);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under this contract or a subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Component" means any item supplied to the Government as part of an end item or of another component.

"Covered country" means—

(1) The Democratic People's Republic of North Korea;

(2) The People's Republic of China;

(3) The Russian Federation; or

(4) The Islamic Republic of Iran.

"Covered material" means—

(1) Samarium-cobalt magnets;

(2) Neodymium-iron-boron magnets;

(3) Tantalum metals and alloys;

(4) Tungsten metal powder; and

(5) Tungsten heavy alloy or any finished or semi-finished component containing tungsten heavy alloy.

"Electronic device" means an item that operates by controlling the flow of electrons or other electrically charged particles in circuits, using interconnections such as resistors, inductors, capacitors, diodes, switches, transistors, or integrated circuits.

"End item" means the final production product when assembled or completed and ready for delivery under a line item of this contract.

"Subsystem" means a functional grouping of items that combine to perform a major function within an end item, such as electrical power, attitude control, and propulsion.

"Tungsten heavy alloy" means a tungsten base pseudo alloy that—

(1) Meets the specifications of ASTM B777 or SAE-AMS-T-21014 for a particular class of tungsten heavy alloy; or

(2) Contains at least 90 percent tungsten in a matrix of other metals (such as nickel-iron or nickel-copper) and has density of at least 16.5 g/cm3).

(b) *Restriction*.

(1) Except as provided in paragraph (c) of this clause, the Contractor shall not deliver under this contract any covered material melted or produced in any covered country, or any end item, manufactured in any covered country, that contains a covered material (10 U.S.C. 4872).

(2) (i) For samarium-cobalt magnets and neodymium iron-boron magnets, this restriction includes—

(A) Melting samarium with cobalt to produce the samarium-cobalt alloy or melting neodymium with iron and boron to produce the neodymium-iron-boron alloy; and

(B) All subsequent phases of production of the magnets, such as powder formation, pressing, sintering or bonding, and magnetization.

(ii) The restriction on melting and producing of samarium-cobalt magnets is in addition to any applicable restrictions on melting of specialty metals if the clause at 252.225-7009 , Restriction on Acquisition of Certain Articles Containing Specialty Metals, is included in the contract.

(3) For production of tantalum metals of any kind and alloys, this restriction includes the reduction or melting of any form of tantalum to create tantalum metal including unwrought, powder, mill products, and alloys. The restriction also covers all subsequent phases of production of tantalum metals and alloys.

(4) For production of tungsten metal powder and tungsten heavy alloy, this restriction includes–

(i) Atomization;

(ii) Calcination and reduction into powder;

(iii) Final consolidation of non-melt derived metal powders; and

(iv) All subsequent phases of production of tungsten metal powder, tungsten heavy alloy, or any finished or semi-finished component containing tungsten heavy alloy.

(c) *Exceptions*. This clause does not apply—

(1) To an end item containing a covered material that is—

(i) A commercially available off-the-shelf item, other than—

(A) A commercially available off-the-shelf item that is 50 percent or more tungsten by weight; or

(B) A tantalum metal, tantalum alloy, or tungsten heavy alloy, such as bar, billet, slab, wire, cube, sphere, block, blank, plate, or sheet, that has not been incorporated into an end item, subsystem, assembly, or component;

(ii) An electronic device, unless otherwise specified in the contract; or

(iii) A neodymium-iron-boron magnet manufactured from recycled material if the milling of the recycled material and sintering of the final magnet takes place in the United States.

(2) If the authorized agency official concerned has made a nonavailability determination, in accordance with section 225.7018-4 of the Defense Federal Acquisition Regulation Supplement, that compliant covered materials of satisfactory quality and quantity, in the required form, cannot be procured as and when needed at a reasonable price.

(i) For tantalum metal, tantalum alloy, or tungsten heavy alloy, the term “required form” refers to the form of the mill product, such as bar, billet, wire, slab, plate, or sheet, in the grade appropriate for the production of a finished end item to be delivered to the Government under this contract; or a finished component assembled into an end item to be delivered to the Government under the contract.

(ii) For samarium-cobalt magnets or neodymium-iron-boron magnets, the term “required form” refers to the form and properties of the magnets.

(d) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (d), in subcontracts and other contractual instruments that are for items containing a covered material, including subcontracts and other contractual instruments for commercial products, unless an exception in paragraph (c) of this clause applies. The Contractor shall not alter this clause other than to identify the appropriate parties.

1.149 DFARS 252.225-7056 PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)

1.150 DFARS 252.225-7058, POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE’S REPUBLIC OF CHINA (JAN 2023)

(a) Definitions. As used in this clause—

“Covered contract” means any DoD contract or subcontract with a value in excess of $5 million, not including contracts for commercial products and commercial services.

“Covered entity” means any corporation, company, limited liability company, limited partnership, business trust, business association, or other similar entity, including any subsidiary thereof, performing work on a covered contract in the People’s Republic of China, including by leasing or owning real property used in the performance of the covered contract in the People’s Republic of China.

(b) Disclosure requirement.

(1) In accordance with section 855 of the National Defense Authorization Act for Fiscal Year 2022 (Pub. L. 117-81, 10 U.S.C. 4651 note prec.), DoD may not award, extend, or exercise an option on a covered contract with a covered entity unless such covered entity submits each required disclosure of its use of workforce and facilities in the People’s Republic of China, if it employs one or more individuals who perform work in the People’s Republic of China on a covered contract.

(2) If the Contractor is a covered entity, the Contractor shall disclose for the Government’s fiscal years 2023 and 2024, the Contractor’s employment of one or more individuals who perform work in the People’s Republic of China on any covered contract. The disclosures shall include—

(i) The total number of such individuals who perform work in the People’s Republic of China on the covered contracts funded by DoD; and

(ii) A description of the physical presence, including street address or addresses in the People’s Republic of China, where work on the covered contract is performed.

(c) Subcontracts. The Contractor shall insert this clause, including this paragraph (c), without alteration other than to identify the appropriate parties, in all subcontracts that meet the definition of a covered contract.

1.151 DFARS 252.225-7060, PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION (JUN 2023)

1.152 DFARS 252.225-7967, PROHIBITION REGARDING RUSSIAN FOSSIL FUEL BUSINESS OPERATIONS (DEVIATION 2024-O0006, REVISION 1) (FEB 2024)

(a) *Definitions*. As used in this clause—

"Business operations" means knowingly engaging in commerce in any form, including acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other known apparatus of business or commerce. The term does not include—

(1) Any shipment subject to price caps as specified in the—

(i) "Statement of the G7 and Australia on a Price Cap for Seaborne Russian-Origin Crude Oil", issued on December 2, 2022, between member countries of that coalition; or

(ii) "Statement of the G7 and Australia on Price Caps for Seaborne Russian-Origin Petroleum Products Berlin, Brussels, Canberra, London, Ottawa, Paris, Rome, Tokyo, Washington", issued on February 4, 2023, between such members, if such shipment complies with the applicable price caps; or

(A) Actions taken for the benefit of the country of Ukraine, as determined by the Secretary; or

(B) Actions taken to support the suspension or termination of business operations for commercial activities during the period beginning on the effective date and ending on December 31, 2029, including—

(1) Any action to secure or divest from facilities, property, or equipment;

(2) The provision of products or services provided to reduce or eliminate operations in territory internationally recognized as the Russian Federation or to comply with sanctions relating to the Russian Federation; and;

(3) Activities that are incident to liquidating, dissolving, or winding down a subsidiary or legal entity in Russia.

Fossil fuel company means an entity or individual that—

(1) Carries out oil, gas, or coal exploration, development, or production activities;

(2) Processes or refines oil, gas, or coal; or

(3) Transports, or constructs facilities for the transportation of, Russian oil, gas, or coal.

(b) *Prohibition*. In accordance with section 804 of the National Defense Authorization Act for Fiscal Year 2024 (Pub. L. 118-31), the Contractor is prohibited from entering into a subcontract or other contractual instrument for the procurement of products or services with any entity or individual that is known to be, or that is known to have fossil fuel business operations with an entity or individual that is, not less than 50 percent owned, individually or collectively, by—

(1) An authority of the government of the Russian Federation; or

(2) A fossil fuel company that operates in the Russian Federation, except if the fossil fuel company transports oil or gas—

(i) Through the Russian Federation for sale outside of the Russian Federation; and

(ii) That was extracted from a country other than the Russian Federation with respect to the energy sector of which the President has not imposed sanctions as of the date on which the contract is awarded.

(c) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services.

1.153 DFARS 252.225-7972, PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (AUG 2024) (DEVIATION 2024-O0014)
1.154 DFARS 252.226-7003, DRUG-FREE WORK FORCE (AUG 2024)
1.155 DFARS 252.227-7033, RIGHTS IN SHOP DRAWINGS (APR 1966)
1.156 DFARS 252.231-7000, SUPPLEMENTAL COST PRINCIPLES (DEC 1991)
1.157 DFARS 252.232-7003, ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018)
1.158 DFARS 252.232-7006, WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

1.159 DFARS 252.232-7007, LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

(a) Contract line item 0001 is incrementally funded. For this item, the sum of $95,413,165 of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	$95,413,165
March 2028	$150,795,693
March 2029	Remaining balance

1.160 DFARS 252.232-7010, LEVIES ON CONTRACT PAYMENTS (DEC 2006)
1.161 DFARS 252.236-7000, MODIFICATION PROPOSALS -- PRICE BREAKDOWN (DEC 1991)
1.162 DFARS 252.236-7001, CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)
1.163 DFARS 252.236-7005, AIRFIELD SAFETY PRECAUTIONS (DEC 1991)
1.164 DFARS 252.236-7013, REQUIREMENT FOR COMPETITION OPPORTUNITY FOR AMERICAN STEEL PRODUCERS, FABRICATORS, AND MANUFACTURERS (JAN 2023)
1.165 DFARS 252.243-7001, PRICING OF CONTRACT MODIFICATIONS (DEC 1991)
1.166 DFARS 252.243-7002, REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)
1.167 DFARS 252.244-7000, SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)
1.168 DFARS 252.246-7003, NOTIFICATION OF POTENTIAL SAFETY ISSUES (JAN 2023)
1.169 DFARS 252.246-7004, SAFETY OF FACILITIES, INFRASTRUCTURE, AND EQUIPMENT FOR MILITARY OPERATIONS (OCT 2010)
1.170 DFARS 252.247-7023, TRANSPORTATION OF SUPPLIES BY SEA—BASIC (OCT 2024)

--End of Document--

DOCUMENT 00 73 00
SPECIAL CONTRACT REQUIREMENTS
6/23

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DOCUMENT 00 73 00
SPECIAL CONTRACT REQUIREMENTS
6/23

1.1 AUTHORITY

a. No person other than the Contracting Officer has authority to bind the Government with respect to this contract.

b. No action or omission of any government employee or representative other than the Contracting Officer shall increase or decrease the scope of this contract or shall otherwise modify the terms and conditions of this contract.

c. In no event shall any of the following be effective or binding on the Government or imputed to the Contracting Officer with respect to this contract:

(1) An understanding or agreement between the Contractor and anyone other than the Contracting Officer;

(2) A purported modification or change order issued by anyone other than the Contracting Officer;

(3) A promise by anyone other than the Contracting Officer to provide additional funding or make payments; or

(4) An order, direction, consent, or permission from anyone other than the Contracting Officer to:

(a) Incur costs in excess of a specified estimated cost, allotment of funds, or other ceiling; or

(b) Expend hours in excess of a specified level of effort.

1.2 ORGANIZATIONAL CONFLICTS OF INTEREST

Review of FAR Subpart 9.5, Organizational and Consultant Conflicts of Interest is encouraged. The intent is to identify and evaluate potential conflicts of interest prior to contract award. Generally, if the Contractor / affiliates /subcontractors under this contract prepares or assists in preparing a statement of work, specifications and plans, the Contractor and its affiliates and any subcontractors/subconsultants may be ineligible to bid or participate, in any capacity, in any contractual effort which is based on such statement of work or specifications and plans as a prime contractor, subcontractor, consultant or in any similar capacity. In addition, the Contractor and its affiliates and/or subcontractors under this contract are ineligible to bid or participate, in any capacity, in any contractual effort which is based upon a statement of work, specifications and plans which the Contractor and its affiliates and/or subcontractors previously prepared or assisted in preparing.

1.3 NOTICE OF BONDING REQUIREMENTS

Within 21 days after receipt of award, the offeror to whom the award is made shall furnish the bonds required by FAR Clause 52.228-15 Performance and Payment Bonds—Construction (DEVIATION 2020-O0016).

Offerors are hereby notified that the contract time for purposes of fixing the completion date, default, and liquidated damages will be as stated in FAR Clause 52.211-10 Commencement, Prosecution, and Completion of Work, regardless of when performance and payment bonds or deposits in lieu of surety are executed.

1.4 UTILITIES FOR CONSTRUCTION AND TESTING

The Contractor shall be responsible for obtaining, either from available Government sources or local utility companies, all utilities required for construction and testing. The Contractor shall provide these utilities at his expense, paid for at the current utility rate delivered to the job site. The Contractor shall provide and maintain all temporary utility connections and distribution lines, and all meters required to measure the amount of each utility used.

1.5 NOTICE CONCERNING LABOR RATES FOR WORK IN GUAM NOT RELATED TO THE REALIGNMENT OF MILITARY INSTALLATIONS AND THE RELOCATION OF MILITARY PERSONNEL TO GUAM

a. The Construction Wage Requirements Statute (formerly known as the Davis-Bacon Act) will not apply to this project. However, the Contract Work Hours and Safety Standards Act will apply; therefore, the following FAR clauses shall be modified to reflect this applicability included in this contract.

1. FAR 52.222-11, Subcontracts (Labor Standards), except that the list of applicable clauses in paragraph b shall be modified to refer only to the clauses: Contract Work Hours and Safety Standards Act- Overtime Compensation, Subcontracts (Labor Standards), and Contract Termination-Debarment, Disputes Concerning Labor Standards.

2. FAR 52.222-12, Contract Termination-Debarment, except that the list of applicable clauses in the first sentence shall be modified to refer only to the Contract Work Hours and Safety Standards Act- Overtime Compensation, Subcontracts (Labor Standards).

b. Offerors maintain the responsibility to comply with the Government of Guam's Labor Certification process and current prevailing wage rates, as applicable. The notice for prevailing wage rates for construction may be obtained from the Department of Labor, Wage and Hour Division, P.O. Box 9970, Tamuning, GU 96931-9970, telephone (671) 475- 7050/51/24.

1.6 NOTICE CONCERNING TEMPORARY SERVICE OR LABOR (8 U.S.C. 1101(a)(15)(H)(ii)b)) (hereinafter referred to as "H-2B") FOR WORK IN GUAM SUPPORTING, ASSOCIATED WITH, OR ADVERSELY AFFECTED BY, THE MILITARY REALIGNMENT OF MILITARY TO GUAM

It is DOD's view that the prime contract is supporting, associated with, or adversely affected by, the military realignment occurring on Guam. Work performed under this contract may meet the requirements for use of H-2B nonimmigrant laborers under the exemptions provided in 48 U.S.C. 1806(b)(1)(B) as implemented by the U.S. Citizenship and Immigration Services (USCIS). Companies performing work under this contract seeking to obtain a statement from the Department of Defense regarding whether DOD views the work as supporting, associated with, or adversely affected by, the military realignment on Guam, should contact Greg Massey at the Guam Department of Labor, Alien Labor Processing and Certification Division at: greg.massey@dol.guam.gov or via phone at 671-475-8005 for information on how to obtain a statement from the Department of Defense. Any denials or delays in obtaining a statement from DoD regarding DOD's view of whether work is supporting, associated with, or adversely affected by, the military realignment on Guam shall not affect the performance of work under this contract. The contractor seeking the statement bears all risk of denial or delay in obtaining a DoD statement. USCIS alone will adjudicate any petitions for use of H-2B nonimmigrant laborers and USCIS alone will make all determinations regarding whether petitions meet the exemptions provided in 48 U.S.C. 1806(b)(1)(B). Any denials or delays in adjudication by the USCIS shall not affect the performance of work under this contract and the contractor petitioning the USCIC bears all risk of USCIS denial or delay in approval.

1.7 NOTICE CONCERNING RECRUITMENT STANDARDS FOR TEMPORARY H2-B SERVICE OR LABOR (8 U.S.C. 1101(a)(15)(H)(ii)b)) FOR WORK IN GUAM SUPPORTING, ASSOCIATED WITH, OR ADVERSELY AFFECTED BY, THE MILITARY REALIGNMENT OF MILITARY TO GUAM

a. **Purpose**. In addition to complying with all USCIS and Guam Department of Labor requirements relating to recruitment of foreign labor, the contractor shall comply with the following recruitment standards designed to recruit U.S. workers. Compliance with these standards are required to support a contractor request to employ H-2B visa workers. The standards are designed to support a Governor of Guam certification, as required under Federal law, that no Guam base realignment construction project work may be performed by a person holding an H-2B visa under the Immigration and Nationality Act until the Governor of Guam, in consultation with the Secretary of Labor, certifies that:

(1) There is an insufficient number of U.S. workers that are able, willing, qualified, and available to perform the work; and

(2) The employment of workers holding H-2B visas will not have an adverse effect on either the wages or the working conditions of workers in Guam.

b. **Recruitment Standards.** The contractor shall take the following actions to recruit U.S. workers.

(1) At least 60 days before the start date of workers under a base realignment construction contract, and annually thereafter for the length of the contract, contractors shall:

(a) Submit job postings via completed Job Orders (Guam Form GES 514) in person at the Guam Employment Service office, which is open Monday to Friday (except holidays) from 8 a.m. to 5 p.m. at 710 Marine Corps Drive, Suite 301, Bell Tower Plaza, Hagatna (for assistance call 671-475-7000). The job postings must be posted on the GDOL Job Bank for at least 21 consecutive days;

(b) Submit job postings with the Commonwealth of the Northern Mariana Islands workforce agency Internet job board at https://marianaslabor.net/employer.asp.

(c) Submit job postings on the workforce agency Internet job board in every State of the Union. Internet sites for state job banks can be found at Department of Labor sponsored website: www.careeronestop.org.

(d) Submit job postings focused on recruiting qualified veterans at the Department of Labor website: www.veterans.gov.

(e) Post a help wanted ad in the local newspaper for American Samoa and have a notice posted in the American Samoa Human Resources agency office. For assistance with these tasks, please see the American Samoa Human Resource agency contacts listed at www.jobbankinfo.org.

(f) For contractors needing assistance with job postings, additional contact information and a link to the required Guam form GES 514 are listed at www.jobbankinfo.org. Each job posting must be posted for at least 21 consecutive days.

(g) Submit job postings with an internet-based job bank that:

1. Is national in scope, including the entire U.S., Guam, the Commonwealth of the Northern Mariana Islands, American Samoa, the Virgin Islands, and the Commonwealth of Puerto Rico;

2. Allows job postings for all occupations; and

3. Is free of charge for job seekers and their intermediaries in American Job Centers (also known as One-Stop Career Centers) and the U.S. employment service delivery system nationwide.

(h) Where the occupation or industry is customarily unionized, contact the local union in Guam in writing to seek U.S. workers who are qualified and who will be available for the job opportunities.

(2) Each job posting must include, at a minimum, the following information:

(a) The contractor's name and appropriate contact information for applicants to inquire about the job opportunity, or to send applications and/or resumes directly to the employer;

(b) The geographic area of employment, with enough specificity to apprise applicants of any travel requirements and where applicants will likely have to reside to perform the services or labor;

(c) A statement indicating whether or not the employer will pay for the worker's transportation to Guam;

(d) If the employer provides it, a statement that daily transportation to and from the worksite(s) will be provided by the employer;

(e) A description of the job opportunity with sufficient information to apprise U.S. workers of the services or labor to be performed, including the duties, the minimum education and experience requirements, the work hours and days, and the anticipated start and end dates of the job opportunity;

(f) If the employer makes on-the-job training available, a statement that it will be provided to the worker;

(g) If required by law, a statement that overtime will be available to the worker and the wage offer for working any overtime hours;

(h) The wage offer, and the benefits, if any, offered;

(i) A statement that the position is temporary;

(j) The total number of job openings the employer intends to fill; and

(k) If the employer provides the worker with the option of board, lodging, or other facilities, including fringe benefits, or intends to assist workers to secure such lodging,
a statement disclosing the provision and cost of the board, lodging, or other facilities, including fringe benefits or assistance to be provided.

(3) During the 28-day recruitment period, which begins on the earliest job posting date, contractor must interview all qualified and available Guam and U.S. construction workers who have applied for the employment opportunity.

(4) After the close of the recruitment period, and no later than 30 days before the start date of workers under a contract, contractor must provide a report including the following information via email to GDOL at ndaa.recruitment@dol.guam.gov, documenting its efforts to recruit U.S. workers from the U.S. and all U.S. territories.

(a) Indicate all the recruitment approaches used to recruit realignment workers, including an identification of the Internet job banks where the postings occurred, the occupation or trade, a description of wages and other terms and conditions of employment, the dates of each posting, and the job order or requisition number;

(b) A copy of each job posting;

(c) How each job posting and response was handled, including

1. The number of job applications received;

2. The name of each applicant;

3. The position applied for; and

4. The final employment determination for each applicant or job candidate.

(d) **Hire American** : for each U.S. job applicant not hired, the contractor shall identify the specific, lawful, job-related reason for rejecting the applicant for employment, which shall include a comparison of the job applicant's skills and experience against the terms listed in the original job posting.

(e) Compliance with the above procedures shall not be construed as or require approval of a recruitment action.. The Guam Department of Labor and USCIS are approval authorities. Any denials or delays in approval by the Guam Department of Labor or the USCIS shall not affect the performance of the prime contract and the contractor bears all risk of USCIS denial or delay in approval.

1.8 DEFINITIZATION OF EQUITABLE ADJUSTMENTS FOR CHANGE ORDERS UNDER CONSTRUCTION CONTRACTS

(1) The Department of the Navy does not have agency-specific policies and procedures that apply to the definitization of equitable adjustments for change orders under construction contracts.

(2) Effective October 28, 2022, the Department of the Navy collects data on the time it takes to definitize equitable adjustments for change orders under construction contracts. Data collected is available at: https://www.secnav.navy.mil/rda/DASN-P/Pages/Contracting-Resources.aspx."

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